



Wolfspeed Benefits Guide 2023



Choose Well. Spend Well. Live Well.

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SUMMARY OF BENEFITS AND COVERAGE (SBC)

The Summary of Benefits and Coverage (SBC) is an Affordable Care Act (ACA) requirement designed to provide a standardized tool to help you compare Wolfsped plans. Other employers must use this format as well, allowing you an easier way to compare “apples to apples” among your insurance options. The SBCs for all plans are included with these enrollment materials, or you can access them on accessHR. You can also access a uniform glossary of insurance terms on accessHR or online at <https://www.dol.gov/agencies/ebsa/laws-and-regulations/laws/affordable-care-act/for-employers-and-advisers/summary-of-benefits>.

AFFORDABLE CARE ACT (ACA)

Since the ACA passed, we have been working to ensure our benefit plans remain in compliance with the law as Wolfsped continues to offer health insurance to eligible employees and their family members. Wolfsped is required to offer all employees, averaging 30 hours or more per week, coverage that meets the ACA requirements of qualifying and affordable coverage. Because Wolfsped provides you with qualifying and affordable coverage as defined by the ACA, you and your dependents will not qualify for subsidies through the public exchange.

The descriptions of the benefits in this guide are not guarantees of current or future employment or benefits. If there is any conflict between this guide and the official Plan Documents, the official Plan Documents will govern.

WELCOME TO WOLFSPEED 2023 BENEFITS

At Wolfspeed, we are committed to providing you with the coverage and protection you need through a comprehensive and competitive benefits package. Our benefits are designed with your physical, emotional and financial wellbeing in mind and provide the resources you and your family need to live healthy and build financial security.

Learn more about:

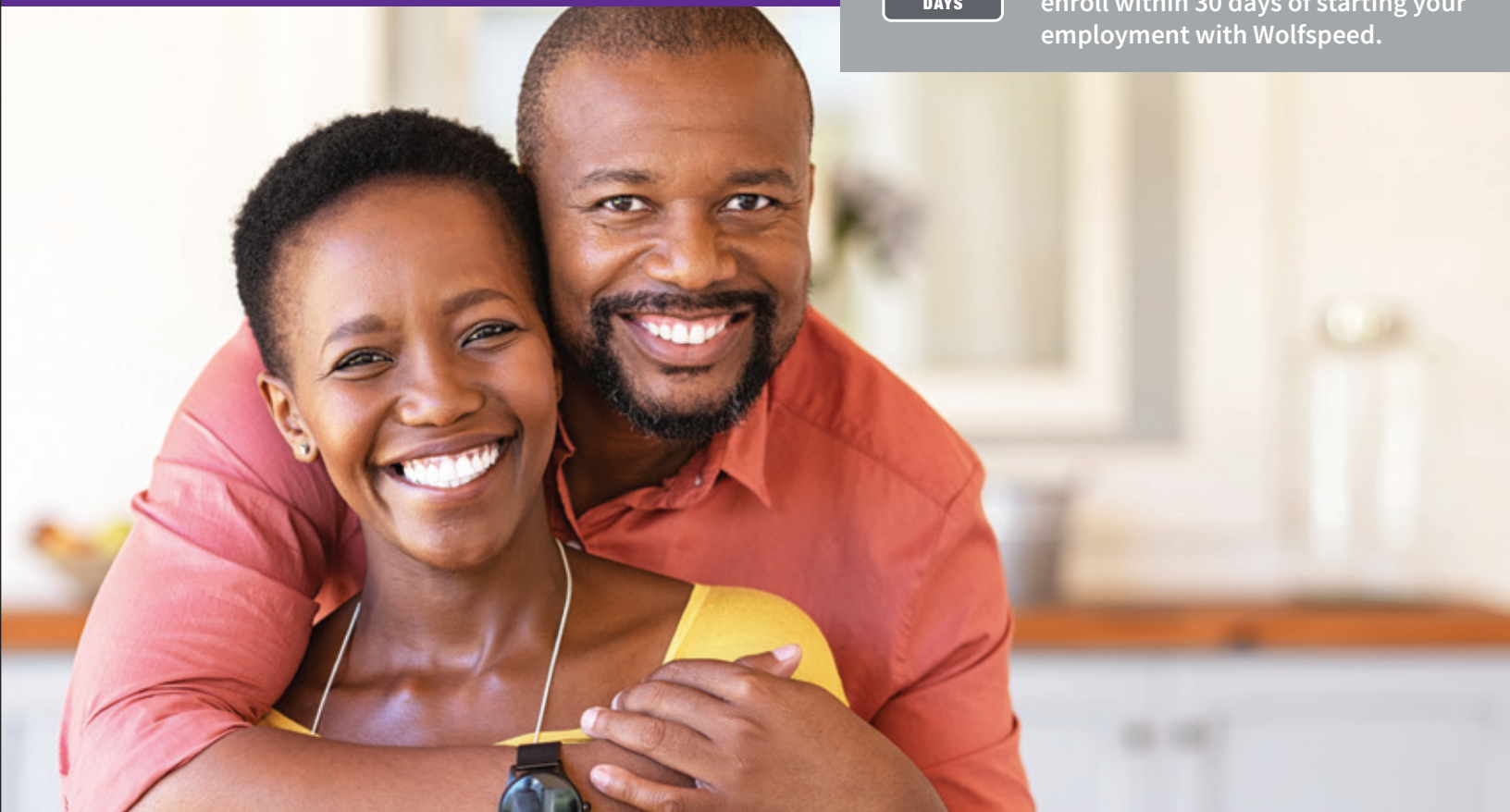
- Medical, dental and vision coverage
- HealthAdvocate (personalized help navigating the healthcare system)
- Mental health support
- Ways to save with tax-free accounts
- Bright Choices Wellness Program
- Employee Assistance Program (EAP)

Please take time to read the information provided in this guide to help you Choose Well. Spend Well. Live Well.



REMEMBER!

If you are a new hire, you need to enroll within 30 days of starting your employment with Wolfspeed.



BENEFITS ENROLLMENT

Wolfspeed’s comprehensive and competitive benefits package is designed to provide solutions and/or support for each employee’s unique life/health/family situation. This Guide provides detailed information about each benefit program as well as important information to help you make informed decisions about the benefits you choose for you and your family.

You will automatically be enrolled to receive some of the benefits outlined in this Guide. For those benefits requiring active enrollment, you must enroll within 30 days of your date of employment with Wolfspeed. If you do not enroll, your next opportunity to do so will be during the next annual Open Enrollment window, typically held in November each year.

The IRS requires that your benefit elections remain in place for the entire calendar year, unless you experience an IRS-defined qualified change in status. A change in status, such as the birth of a child, a marriage, or a divorce, allows you to make a corresponding change to an eligible election within 30 days of the qualifying event (or within 60 days for certain special enrollment events). Learn more on accessHR.

Please take this opportunity to review the benefits package outlined in this Guide and ensure your selections meet your needs and those of your dependents. If you choose to enroll your dependents, please note dependent eligibility documentation is required and must be provided to accessHR.

Who Is Eligible

Full-time employees, Part-time employees and interns will be eligible for medical, dental and other ancillary benefits. Employees must be based in the U.S. to be eligible for coverage.

Please note that certain benefits, including Life and Accidental Death & Dismemberment coverage, and Short and Long-Term Disability are only available to employees working at least 20 hours per week.

Dependent Coverage

Eligible dependents include:

- Your spouse, under a legally valid, existing marriage.
- Your or your spouse’s legal children until they reach age 26 (please consult with HealthAdvocate or accessHR for the full definition and exception under the HSA) regardless of marital or student status for all plans.
- A dependent child of any age who is incapable of supporting himself/herself because of a mental or physical disability (the disability must be medically certified by the child’s doctor and be verified annually by the plan).

Accepted Documents Establishing Eligibility of Dependents

For each type of dependent, you must have one document from each column.

SPOUSE		BIOLOGICAL CHILD, ADOPTED CHILD, FOSTER CHILD (UP TO AGE 26)		STEP-CHILD (UP TO AGE 26)		
A	B	A		A	B	C
Marriage certificate	Most recent 1040 with spouse listed	Birth certificate referencing you or your spouse as the child's parent		Birth certificate referencing your spouse as the child's parent	Marriage certificate between the step-parent and natural parent	Most recent 1040 showing step-parent and natural parent filed jointly
	Joint bank/credit account	Adoption decree		Adoption decree referencing your spouse as the child's parent		Joint bank/credit account for step-parent & natural parent
	Joint lease/mortgage	Court order establishing paternity		Court order establishing paternity for your spouse		Joint lease/mortgage for step-parent and natural parent
	Joint household account	Court issued documentation establishing legal guardianship		Court-issued documentation establishing legal guardianship for your spouse		Joint household account for step-parent and natural parent

NOTE: The definition of an eligible child is different for an HSA than it is under our medical plans. An adult child must still be considered a tax-dependent (generally under the age of 19 or student between 19 and 24) in order for the child’s medical expenses to qualify for payment or reimbursement from a parent’s HSA.

HEALTHADVOCATESM: ALWAYS AT YOUR SIDE

Beginning January 1, 2023, you and your family will have access to **HealthAdvocateSM** who can save you time, money, and worry by providing personal assistance on a wide range of healthcare-related and insurance issues, including items such as:

Finding doctors and arranging second opinions...

HealthAdvocate can help locate in-network doctors and specialists in your area, arrange medical appointments, and coordinate the transfer of medical records and all aspects related to your care.

Resolving claims and billing issues...

They can research a claim or bill, and work on your behalf to sort out the issue with your insurance company and healthcare provider.

Clarifying health conditions...

They can help answer your questions about diagnoses, test results, treatment options, medications, so you can make more informed decisions.

Helping you understand your insurance...

They can answer questions about your coverage, including medical, prescription, dental, vision, Medicare, and additional plan/coverage options.

Explaining costs for services you may need...

This includes the deductibles you have to meet, as well as the copays/coinsurance for doctor.

HealthAdvocate supports the whole family...

HealthAdvocate services are available to you and your family at no cost to you. Any information you share with HealthAdvocate is strictly confidential.

Find the best care for your needs, preferences and wallet...

- Use the Quality Connect Provider Match tool to locate high-quality, low-cost doctors, specialists, and medical facilities
- 24/7 self-service through the mobile app or website, plus ongoing support from a Personal Health Advocate
- Search by provider, in-network status, procedure, condition, specialty, and personal preferences
- Compare real-time out-of-pocket costs
- See quality scores and HealthAdvocate “Quality Match” results
- Do a side-by-side comparison of quality, costs and patient satisfaction reviews for providers, hospitals and more

HealthAdvocate is here to support you every step of the way so you can focus on what matters most.

Contact HealthAdvocate:

- **Phone:** 866-799-2731
- **Website:** www.HealthAdvocate.com/wolfsspeed
- **Email:** Answers@healthadvocate.com

WHAT SHOULD I THINK ABOUT BEFORE ENROLLMENT?

Considering your benefit options each year is important. Review the questions below and read the **People Like Me** scenarios on the next page.



What are my family's **health care** needs and my own?



Who will I need to cover?



Besides health care, what **other benefits** do I need?



Are there specific **doctors** I want to see?



How should I **budget** for my benefit expenses?



Do I need to **update** my **beneficiaries**?

YOUR ENROLLMENT CHECKLIST

- ☐ **Complete your elections** through **Workday**.
- ☐ You must enroll and provide all dependent documentation **within 30 days** of starting your employment at Wolfspeed.
- ☐ Submit your required proof of eligibility documentation for a spouse and/or children you are enrolling in medical/dental coverage to accessHR.
- ☐ You must provide the Social Security Number (SSN) and date of birth for any spouse and/or dependent you enroll. **Please note, you must enroll a newborn child in the plan within 30 calendar days of the birth, regardless of whether you have received a SSN yet, or wait until the next Open Enrollment period.**
- ☐ As a new hire, you can enroll in Supplemental Life and Accidental Death and Dismemberment (AD&D) insurance without Evidence of Insurability (EOI) up to the guaranteed issue amount. EOI will be required for any amounts above the guaranteed issue amount.

If you are electing any of the Life and/or AD&D supplemental plans, or updating your beneficiaries, you must enter the beneficiary name, date of birth, and SSN.
- ☐ You will not be permitted to make changes to your benefit elections again until January 2024 unless you experience a qualifying life event (e.g., birth, marriage, divorce).
- ☐ **Don't forget to print/save your confirmation statement and provide any required documentation (e.g., dependent certifications, EOI, etc.).**

PEOPLE LIKE ME

Want to learn more about how other Wolfspeed employees may approach their healthcare choices? These scenarios may not match your situation exactly, but they provide details that can help you make choices to fit your life. **Take a look!**

Employee Coverage



Meet Matt

Matt is 25 and single. He is young and in generally good health. Historically, Matt uses the medical plan for preventive care and occasional office visits and prescriptions. He enrolled in the HSA Medical Plan because after comparing potential costs under both plans, he determined that the HSA Medical Plan would have the lowest out-of-pocket costs over the course of the year through a combination of lower biweekly contributions, the annual \$500 contribution from Wolfspeed to his HSA, and the tax savings from his own HSA contributions.

And since Matt is unlikely to use much, if any, of his HSA money, he can let the full HSA balance – including investment earnings – carryover from year to year and build up over time to have as a health care “nest egg” if he gets married and starts a family down the road.

Employee + Spouse Coverage



Meet Mary

Mary and her husband John are “empty nesters” in their early 60s who are looking forward to retiring in the next few years. Mary is currently undergoing treatment for a recurrence of breast cancer and she and John assumed Mary had reached her individual annual deductible and out-of-pocket maximum in the HSA Medical Plan early in the year and that her bills were all being paid.

However, Mary continues to get high bills from providers she never met for services she doesn’t recall getting, along with letters from collection agencies. Given the stress of Mary’s medical condition, John and Mary don’t have the time or inclination to wade through months of questionable bills and claims, so they enlist the aid of experts at HealthAdvocate to help them resolve the payment issues with Cigna, providers, and the collectors.

They also contact the Employee Assistance Program (EAP), provided through Spring Health, to discuss techniques to help them manage stress. Mary and John are both eligible for up to six free visits with a qualified counselor. If they require additional visits, they will be covered on an in-network basis under their Wolfspeed medical option because all Spring Health counselors are network providers.

Looking to the future, Mary and John contact a Fidelity financial advisor to begin discussing a retirement strategy for Mary’s 401(k) – managed by Fidelity. During the planning process, they also consider their other sources of savings and retirement income, including the tax-free money they’ve accumulated in their Wolfspeed HSA over the years that they plan to use to pay for qualifying health care expenses in retirement.

PEOPLE LIKE ME (continued)

Employee + Child(ren) Coverage



Meet Emily

Emily is a 36-year-old single mother of two sons, ages 5 and 7. Both boys are heavily involved in sports and other activities and are prone to frequent colds, ear infections, sore throats, fever... and more visits to urgent care and the ER than Emily even wants to think about.

After reviewing the Wolfsped Benefit Guide, Emily decides to enroll in the Copay Medical Plan because she likes the security of paying a flat-dollar copay whenever the boys need to see their primary care provider or a specialist. She also likes the convenience of being able to talk to a doctor – any time, day or night – through Cigna’s MDLIVE telemedicine program for the same cost as an office copay without having to leave home or work.

Since Emily is enrolled in the Copay Medical Plan she decided to contribute to a Health Care Flexible Spending Account – which isn’t available to HSA Medical Plan participants – to pay for her 2023 out-of-pocket medical, dental, and vision expenses on a tax-free basis. And since the full amount of her HCFSAs contribution goes into her account in the beginning of the year, she’ll have the money on hand to pay for her annual copays, deductibles, coinsurance, prescription, and other eligible out-of-pocket expenses right from the start.

Family Coverage



Meet Doug

Doug is 45 years old and has enrolled himself, his wife and their two teenage children in the HSA Medical Plan. Being parents to two high schoolers has been particularly challenging for Doug and his wife, especially since their son continues to have behavioral issues and their daughter was recently diagnosed with a serious chronic medical condition which has resulted in frequent doctor visits, lots of tests, and a mountain of unpaid medical claims. All of this has taken a toll on Doug and he is having a difficult time managing work, family health issues, bills ... and his own personal stress.

As a first step, Doug contacts HealthAdvocate who provides some valuable insights into his understanding of his daughter’s condition. HealthAdvocate has also gotten Doug’s permission to discuss his daughter’s condition with her doctors – including exploring second opinions and alternative treatments – and work with Cigna to resolve the unpaid claims.

Doug also contacts the Employee Assistance Program (EAP) – through Spring Health – who helps him find mental health professionals in his area to help him manage his stress and work with their son on his behavioral issues. Doug and his son are both eligible for 6 free sessions. Additional sessions are covered under their medical plan on an in-network basis because Spring Health counselors all participate in the Cigna network.

Note: The scenarios depicted in this document are for illustrative purposes only.

MEDICAL

Wolfspeed is pleased to offer two Cigna medical options — the HSA Medical Plan and the Copay Medical Plan. Both options cover the same services and use the same Cigna provider network.

MEDICAL (Administered by Cigna®)				
	HSA MEDICAL PLAN		COPAY MEDICAL PLAN	
	In-Network*	Out-of-Network**	In-Network	Out-of-Network**
Annual Deductible				
• Employee only coverage	\$2,250	\$4,500	\$750	\$1,500
• Family coverage				
– Individual	\$3,000	\$6,000	\$750	\$1,500
– Family	\$4,500	\$9,000	\$1,500	\$3,000
Coinsurance	20%	40%	20%	40%
Annual Out-of-Pocket Maximum (deductibles, copays & coinsurance)				
• Employee only coverage	\$4,500	\$9,000	\$4,500	\$9,000
• Family coverage				
– Individual	\$4,500	\$9,000	\$4,500	\$9,000
– Family	\$9,000	\$18,000	\$9,000	\$18,000
Preventive Care	\$0 (no deductible)	40% AD	\$0 (no deductible)	40% AD
Office Visits (including virtual visits)	20% AD	40% AD		40% AD
• PCP			\$20 copay	
• Specialist			\$30 copay (no deductible)	
Hospital (inpatient & outpatient)	20% AD	40% AD	20% AD	40% AD
Urgent Care Facility	20% AD	40% AD	\$50 copay (no deductible)	\$50 copay (no deductible)
Virtual Urgent Care	20% AD	Not covered		Not covered
• PCP			\$20 copay	
• Specialist			\$30 copay (no deductible)	
Emergency Room	20% AD	20% AD	1st Visit: \$150 copay, then 20% AD 2nd Visit: \$300 copay, then 20% AD	
Annual Wolfspeed Contribution (“seed money”) to Health Savings Account (HSA)				
• Employee only coverage		\$500		N/A
• Family coverage		\$1,000		

*Because of ACA requirements no individual family member will be required to pay more than \$9,100 if enrolled in the HSA Medical Plan.

**Out-of-network benefits are subject to maximum reimbursable charges (MRC) limits. You are responsible for 100% of the costs above MRC. Amounts that exceed MRC do not count towards the annual out-of-pocket maximum.

- Note: If you enroll in the HSA Medical Plan the individual deductible is different for those who elect employee only coverage and family coverage.
- The deductible and coinsurance amounts reflect your cost.
- AD = After Deductible. The plan will pay its portion of the coinsurance after you meet the applicable individual or family deductible.
- A full list of covered preventive services can be located on <https://www.healthcare.gov/what-are-my-preventive-care-benefits/>

Preventive Services

For a full list of covered preventive services, go to www.cigna.com or www.mycigna.com.

For a list of in-network providers, claim status, deductible and coinsurance balances, and more, go to myCigna.com. You'll need to register if it's your first time on the site.



PHARMACY COSTS ARE RISING EVERY YEAR...

In an effort to control costs for you and the Company, if you or your doctor request a brand-name medicine when a generic equivalent is available, you will pay the generic copay plus the cost difference between the brand name and generic. If there is a clinical reason why you must use the brand name prescription, your doctor should call CVS Caremark to discuss.

Find a list of generic drugs at www.caremark.com.

Prescription Drugs

CVS Caremark® is our pharmacy benefit provider. This means you will be issued a Cigna medical card plus a prescription benefit card from CVS Caremark. Under the pharmacy benefit, you can pick up your medications from a retail pharmacy or through mail order.

You can also **save money by filling your maintenance prescription drugs as a 90-day supply** at either CVS or Target pharmacies or through the CVS mail order service. Maintenance drugs are prescription medicines you take for extended periods or to treat or control a chronic condition.

Prescriptions for supplies of 30 or fewer days (such as antibiotics) can be filled at any participating network pharmacy.

To get your prescriptions by mail order, just complete the mail order prescription form, available on CVS Caremark's website at www.caremark.com, and send it to the mail order pharmacy along with your copayment and written prescription.

Preventive medications as defined by ACA are covered at 100% for all plans. The CDHP also covers at 100% a list of maintenance medications deemed to be preventive for chronic conditions. Drugs on this list will not be subject to deductibles.

What are generic drugs?

A generic drug is a medication created to be the same as an already marketed brand name drug in dosage form, safety, strength, route of administration, quality, performance characteristics, and intended use. These similarities help to demonstrate that a generic medicine works in the same way and provides the same clinical benefit as its brand-name version. In other words, you can take a generic medicine as an equal substitute for its brand name counterpart.

Prescription Benefits under the Cigna HSA Medical Plan and Copay Medical Plan

PRESCRIPTION DRUGS

	HSA MEDICAL PLAN		COPAY MEDICAL PLAN	
	In-Network	Out-of-Network	In-Network	Out-of-Network
RETAIL				
Generics	\$10 AD	\$10 copay + COAL	\$10 copay	\$10 copay + COAL
Preferred Brand	50% up to \$40 AD	50% up to \$40 + COAL	50% up to \$40	50% up to \$40 + COAL
Nonpreferred Brand	50% up to \$60 AD	50% up to \$60 + COAL	50% up to \$60	50% up to \$60 + COAL
Specialty	50% up to \$150 AD	50% up to \$150 + COAL	50% up to \$150	50% up to \$150 + COAL
MAIL ORDER				
Generics	\$25 AD	Not Covered	\$25 copay	Not Covered
Preferred Brand	50% up to \$80 AD		50% up to \$80	
Nonpreferred Brand	50% up to \$120 AD		50% up to \$120	
Specialty	N/A		N/A	

- Because of the Affordable Care Act, no individual family member will be required to pay more than \$9,100 if enrolled in the CDHP.
- The deductible and coinsurance amounts above are reflective of the employee's cost.
- AD = After Deductible. The plan will pay its portion of the coinsurance after you meet the applicable individual or family deductible.
- COAL = charge over in-network allowed amount.
- Find a full list of covered preventive services at: <https://www.healthcare.gov/what-are-my-preventive-care-benefits/>.
- To view a listing of providers, status of a claim, deductible and coinsurance balance, drug dictionary, generic drug availability, drug interactions, and much more, go to www.caremark.com. First-time users will need to register to gain access.

NOTE: The CVS Caremark mail order service has several advantages. By using the CVS mail order service, you are automatically using a participating pharmacy, so there are no claim forms to file for reimbursement. In addition, you can submit and receive your prescriptions from the convenience of your home.

MEDICAL BIWEEKLY EMPLOYEE CONTRIBUTIONS

	HSA MEDICAL PLAN	COPAY MEDICAL PLAN
Employee	\$47	\$58
Employee + Spouse	\$114	\$130
Employee + Child(ren)	\$107	\$122
Family	\$170	\$193

VIRTUAL CARE

Kids get sick, accidents happen, life is hectic ... you may not always have time to get to the care you need.

Now you don't have to wait, or travel, for the care you need. Connect by video or phone, whenever it's convenient for you. Best of all, virtual care from **MDLIVE**[®] board-certified doctors is available to you and your eligible dependents as part of your Wolfsped medical plan benefits.

Primary care: Preventive care, routine care, and specialist referrals

- Preventive care checkups/wellness screenings available at no additional cost to identify conditions early.
- Routine care visits allow you to build a relationship with the same primary care provider (PCP) to help manage conditions.
- Prescriptions available through home delivery or at local pharmacies, if appropriate.
- Receive orders for biometrics, blood work, and screenings at local facilities¹.

Urgent Care: On-demand care for minor medical conditions

- On-demand 24/7/365, including holidays
- Care for hundreds of minor medical conditions
- A convenient and affordable alternative to urgent care centers and the emergency room
- Prescriptions available, if appropriate

Behavioral Care: Talk therapy and psychiatry from the privacy of home

- Access to psychiatrists and therapists
- Schedule an appointment that works for you
- Option to select the same provider for every session
- Care for issues such as anxiety, stress, life changes, grief and depression

Dermatology²: Fast, customized care for skin, hair, and nail conditions — no appointment required

- Board-certified dermatologists review pictures and symptoms; prescriptions available, if appropriate
- Care for common skin, hair, and nail conditions, including acne, eczema, psoriasis, rosacea, suspicious spots and more
- Diagnosis and customized treatment plan, usually within 24 hours

Connecting to virtual care is easy – just follow these three steps:

Step 1	Access MDLIVE by logging into myCigna.com and clicking on "Talk to a doctor." You can also call MDLIVE at 888-726-3171 . Note, there are no phone calls for virtual dermatology.
Step 2	Select the type of care you need: Medical care or counseling. The cost will be displayed on both myCigna.com and MDLIVE.
Step 3	Follow the prompts for an on-demand urgent care visit, to make an appointment for primary or behavioral care, or to upload photos for dermatology care.

To **make an appointment, visit myCigna.com**. Appointments are available via video or phone whenever it's most convenient for you. Virtual dermatology does not require an appointment.

¹ Limited to labs contracted with MDLIVE for virtual wellness screenings.

² Virtual dermatological visits through MDLIVE are completed via asynchronous messaging. Diagnoses requiring testing cannot be confirmed. Customers will be referred to seek in-person care. Treatment plans will be completed within a maximum of three business days, but usually within 24 hours.

LGBTQ+ INCLUSIVE BENEFITS

At Wolfspeed, we are committed to providing comprehensive benefits coverage for all. Here are the highlights of the benefits and services available to our LGBTQ+ colleagues and their spouse.

STANDARD BENEFITS	ADDITIONAL SERVICES
• Medical Benefits, including: – Gender affirming treatment, and – Care for employees, spouses, and children • Prescription Drugs • Dental Care • Vision Care • Supplemental Life & AD&D Insurance	• Family Formation, including: – Adoption assistance • HIV Treatment/Prevention • Employee Assistance Program (EAP) • Bright Choices Wellness Program

For more information, please contact **HealthAdvocate** at **866-799-2731**.

TRAVEL BENEFITS FOR MEDICAL CARE

You may be eligible for reimbursement of certain travel and lodging expenses to receive covered services not available from a network provider within 100 miles of your residence. Expenses will be reimbursed to a maximum of \$10,000 per lifetime. Contact Health Advocate or Cigna, prior to travel for details regarding coverage. Travel expenses will be reimbursed only if the medical services are received from an in-network provider.



Embedded: This means that each covered family member has an individual deductible, which is the most any one person would have to pay before the plan begins to pay benefits. Once expenses for two or more family members meet the family deductible, the plan begins paying coinsurance for all family members.

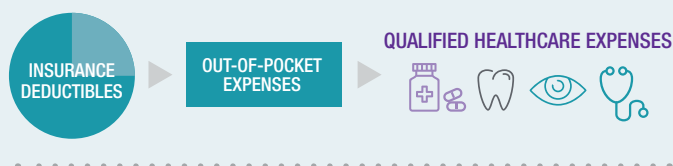
SPEND WELL.

Eligible expenses include doctor's office visits, eye exams, prescription expenses, and LASIK surgery. IRS Publication 502 provides a complete list of eligible expenses and can be found at www.irs.gov.

How Your HSA Can Work For You

A Health Savings Account (HSA) combines high-deductible health insurance with a tax-favored savings account.

Money in this account can help pay:



Any money left in the savings account earns interest and is yours to keep year over year — there is no “use it or lose it” rule.

Triple Tax Benefits

100%
TAX DEDUCTIBLE

Contributions are 100% tax deductible up to the annual limit, so contribute the maximum amount:

\$3,850/year
for an individual



\$7,750/year
for a family



+ \$1,000/year
if you're over age 55



Account accumulates interest over the years tax deferred, allowing you to decide when to spend and when to save.



Withdrawals are tax-free as long as they are used for qualified medical expenses, even in retirement.

These maximums include both Wolfsped's and your contributions.

TAX SAVINGS ACCOUNTS

Cigna HSA Medical Plan

The HSA Medical Plan is designed to be simple. You have an annual deductible and you pay first-dollar costs for all services, including physician visits and prescriptions, except preventive care services. Once you meet the appropriate in-network or out-of-network deductible, you pay coinsurance until the out-of-pocket maximum is met. Preventive care exams are covered at 100% by the plan. Wolfsped also covers preventive prescription drugs at 100% for HSA Medical Plan participants.

The HSA Medical Plan uses the same network of physicians and hospitals as both the Cigna Copay Medical Plan. Keep in mind, you will receive better discounts and pay less money out-of-pocket when seeking services at in-network providers. With your enrollment materials, you'll find more information about the HSA Medical Plan so you can see how easy it is to use.

Health Savings Account (HSA)

If you enroll in the HSA Medical Plan, you can open a health savings account (HSA), which is a bank account that you can use to pay for qualified health care expenses with pretax dollars. Wolfsped will make an annual deposit into your HSA if you elect this plan.

- Employees without dependents on the health plan will receive \$500, while all employees with covered dependents will receive \$1,000.

You are eligible to open and fund an HSA if:

- You are covered by an HSA-eligible consumer-directed health plan (CDHP)
- You are not covered by your spouse's health plan, Health Care FSA, or Health Reimbursement Account (HRA)
- You do not have any funds remaining in your Health Care FSA
- You are not eligible to be claimed as a dependent on someone else's tax return
- You are not enrolled in Medicare, TRICARE, or TRICARE for Life
- You have not received Veterans Administration Benefits

You can use HSA money to pay for eligible expenses tax-free now or in the future. All money that is deposited into the HSA is your money to use on health care expenses for you and your family, even if your dependents are not covered by the HSA Medical Plan. HSA money remains available to you after the end of the plan year, until you exhaust all money in the account, even if you choose not to remain in the HSA Medical Plan in future years.

NOTE: the definition of an eligible child is different for an HSA than it is under our medical plans. An adult child must still be considered a tax-dependent (generally under the age of 19 or a student between 19 and 24) in order for the child's medical expenses to qualify for payment or reimbursement from a parent's HSA.

Flexible Spending Accounts (FSA)

A great way to plan ahead and save money over the course of a year is to participate in the FSAs. These accounts allow you to contribute to the FSA on a pretax basis. You can incur expenses beginning January 1, 2023, until March 15, 2024. You have until April 30, 2024 to file claims for reimbursement. You must actively elect your contribution to the FSAs each year. Your current contribution will not carry over into the next year. For a complete list of eligible expenses, refer to IRS Publication 502 on www.irs.gov.

NOTE: If you participate in an HSA, you cannot enroll in a Health Care FSA.

Health Care FSA

Use this account to pay medical, vision, and dental expenses that are not reimbursed by your medical and dental plans. You don't even have to be enrolled in any of the health plans offered by Wolfsped to participate. The Health Care FSA is a prefunded account, which means you can submit a claim for health care expenses in excess of your account balance. You will be reimbursed for your total eligible expense up to your annual election.

You must decide how much to set aside for this account. **You may contribute up to \$2,850.** But estimate carefully. You'll lose any amount you don't use before March 15, 2024.

NOTE: You will be issued a debit card for your FSA. Use it to pay for eligible health care and dependent care expenses at the doctor's office, the pharmacy counter, and other approved service providers.

Dependent Care FSA

Use this account to pay for the care of children under age 13 or dependents of any age who are unable to care for themselves because of mental or physical handicaps. The services must be necessary to allow you and your spouse, if applicable, to work or attend school full-time. The Dependent Care FSA is **not** a prefunded account. You can only be reimbursed up to your current account balance, not your annual election amount.

To comply with IRS regulations, you must report your day care provider's Social Security or tax identification number when submitting receipts for reimbursement. You must decide how much to set aside for this account. **You may contribute up to \$5,000** (\$2,500 if you are married and filing a separate return). But, remember, you'll lose any amount you don't use before March 15, 2024.

The Dependent Care FSA is subject to requirements imposed by §129 of the Internal Revenue Code. If you are classified as a "highly compensated employee" (as defined under the Internal Revenue Code), your contribution may be subject to change so that Wolfsped may comply with nondiscrimination requirements.

BRIGHT CHOICES WELLNESS PROGRAM

The Bright Choices wellness program, powered by Virgin Pulse, is your gateway to getting healthier. Whether you want to eat healthier, lose weight, reduce stress, quit tobacco products or something else, there are wellbeing activities that can help you work toward and achieve your goals. To get started, go to join.virginpulse.com/wolfspedbrightchoices or download the mobile app from the App Store or Google Play.

Virgin Pulse provides you access to cutting-edge technology and an expanded array of wellness tools and information to keep you engaged and motivated 365 days a year.

Use the platform to track healthy habits, find personal support and intentionally develop a new and healthier normal.

Virgin Pulse helps you stay healthy through the following tools and more!

- **Journeys®:** Reaching a personal health goal starts with a single step. Journeys are daily, self-guided courses to help you build healthy habits. Take that first step by starting a Journey today.

- **Coaching:** Your coach can help you stay motivated and accountable.

Your coach takes a whole-person approach to coaching, meaning they are ready to discuss many areas of your health.

- **Nutrition Guides:** Customized eating guide based on your eating style and health goals to help you fine tune your nutrition and chart your progress.

- **Sleep Guide:** Personalized sleep guide to track and improve your sleep habits.

LIVE WELL.

Connect a fitness tracker to monitor your steps, active minutes, and sleep. (Max Buzz, Apple Watch, Fitbit, etc.)

All information will be kept **completely confidential**, and no health-related data will be shared with any Wolfsped employee.



DENTAL

With the Wolfsped Dental Plan — administered by Delta Dental — you are free to choose any dentist. However, if you receive services from a dentist that’s not in the network, in addition to the coinsurance and applicable deductible, you may be responsible for the difference between the dentist’s billed charge and the “allowed” amount by Delta Dental. Before receiving services, we encourage you to find out if your dentist is in-network (by contacting him/her directly or visiting www.deltadentalnc.com).

SERVICES	BENEFITS
Deductible	Individual: \$50 Family: \$150
Preventive	Covered at 100% (no deductible)
Basic	20% AD
Major	50% AD
Annual Benefit Maximum (per individual)	\$1,500
Orthodontic Services (adult and child)	50%
Orthodontic Lifetime Maximum (per individual)	\$2,000

- The deductible and coinsurance amounts above are reflective of the employee’s cost.
- AD=After Deductible. The plan will pay its portion of the coinsurance after you meet the applicable individual or family deductible.
- To view a listing of providers, status of a claim, deductible balance, and much more, go to www.deltadentalnc.com. First-time users will need to register to gain access.

DENTAL BIWEEKLY EMPLOYEE CONTRIBUTIONS	
Employee	\$7
Employee + Spouse	\$13
Employee + Child(ren)	\$17
Family	\$25

LIVE WELL.

The Dental Plan provides additional preventive benefits to those diagnosed with diabetes, coronary artery disease, cerebrovascular disease, or who are pregnant. For more information about this enhanced dental benefit, please call 800-662-8856.

THE DENTAL PLAN IN ACTION – AN EXAMPLE

Jess is a 35-year-old single employee who decides to enroll in the dental plan to take advantage of the adult orthodontic benefit which will pay 50% of the cost, up to the \$2,000 lifetime orthodontic maximum. She’ll also get a free preventive exam and cleaning – at no cost to her. And although her teeth are healthy, Jess likes the security of knowing the plan will pay 80% if she needs fillings and other basic services at 50% if she requires crowns, root canals or other major services – up to an annual maximum of \$1,500 – after she meets a \$50 annual deductible.

Since Jess is also enrolled in the Copay Medical Plan, she decides to contribute to a Health Care Flexible Spending Account (HCFSAs) to pay for her share of the orthodontic bill.



VISION

The Vision Plan – administered by EyeMed Vision – provides a \$130 annual allowance for frames and lenses plus a \$180 annual allowance for contacts at participating optical shops and large chain retail stores in your area. There are also discounts for expenses over the allowance and for additional pairs of glasses, non-prescription sunglasses, laser vision correction and more when you use an in-network provider.

Eye exams are covered “two” – in fact you’re eligible for **two vision exams a year** if you enroll in for Wolfsped medical coverage through Cigna **and** vision coverage through EyeMed. If you enroll in a Cigna medical plan only but **not** a stand-alone vision plan through EyeMed, you will have access to an annual eye exam through Cigna.

Look below to see how the Vision Plan works:

VISION (Administered by EyeMed®)		
VISION CARE SERVICES	IN-NETWORK MEMBER COST	OUT-OF-NETWORK MEMBER REIMBURSEMENT
Exam Services*	\$10 copay	Up to \$40
Frame*	\$0 copay; 20% off balance over \$130	Up to \$91
Contact Lenses* (Contact lens allowance includes materials only)		
• Contacts – Conventional	\$0 copay; 15% off balance over \$180	Up to \$91
• Contacts – Disposable	\$0 copay; 100% of balance over \$180	Up to \$91
• Contacts – Medically Necessary	\$0 copay; paid in full	Up to \$300
Standard Plastic Lenses		
• Single Vision	\$0 copay	Up to \$30
• Bifocal	\$0 copay	Up to \$50
• Trifocal	\$0 copay	Up to \$70
• Lenticular	\$0 copay	Up to \$70
• Progressive – Standard	\$55 copay	Up to \$50
• Progressive Premium – Tier 1	\$85 copay	Up to \$50
• Progressive Premium – Tier 2	\$95 copay	Up to \$50
• Progressive Premium – Tier 3	\$110 copay	Up to \$50
• Progressive Premium – Tier 4	\$175 copay	Up to \$50
Lens Options		
• Anti-Reflective Coating – Standard	\$45 copay	Up to \$23
• Anti-Reflective Coating – Tier 1	\$57 copay	Up to \$23
• Anti-Reflective Coating – Tier 2	\$68 copay	Up to \$23
• Anti-Reflective Coating – Tier 3	\$85 copay	Up to \$23
Discounted Exam Services (non-preventive)		
• Retinal Imaging	Up to \$39	N/A
Contact Lens Fit and Follow-Up**		
• Fit & Follow-up – Standard	Up to \$40	N/A
• Fit & Follow-up – Premium	10% off retail price	N/A
Discount Lens Options		
• Photochromic – Non-Glass	\$75	N/A
• Polycarbonate – Standard	\$40	N/A
• Scratch Coating – Standard Plastic	\$15	N/A
• Tint – Solid or Gradient	\$15	N/A
• UV Treatment	\$15	N/A

*Once every calendar year. However, your EyeMed exam is **in addition** to the eye exam through your Wolfsped Medical Plan.

**Contact lens fit and follow-up visits are available once a comprehensive eye exam has been completed.

ADDITIONAL SAVINGS FOR EYEMED® MEMBERS

40% off

additional pairs of glasses and a 15% discount on conventional lenses once the funded benefit is used

20% off

any item not covered by the plan, including non-prescription sunglasses

Lasik

Lasik or PRK from U.S. Laser Network: 15% off retail price or 5% off promotional price

Hearing Care

Through Amplifon Hearing Health Care Network, members receive up to 64% off hearing aids, an extended warranty, and free batteries

VISION BIWEEKLY EMPLOYEE CONTRIBUTIONS

Employee only	\$3.07
Employee + Spouse	\$5.83
Employee + Child(ren)	\$6.14
Employee + Family	\$9.02

THE VISION PLAN IN ACTION – AN EXAMPLE

Pat is enrolled in the new Vision Plan through EyeMed. Although Pat had an eye exam through the Cigna Copay Medical Plan a few months ago, Pat has been having problems driving at night and schedules an exam with an EyeMed in-network provider who suggests a change in prescription. Pat selects frames and lenses that are within the \$130 network allowance and contact lenses that are \$20 above the \$180 contact allowance.

Pat also wants a pair of prescription sunglasses for summers at the beach. With her EyeMed benefit she gets 40% off additional pairs of all prescription glasses, sunglasses included. Pat purchases \$200 prescription sunglasses, but only has to pay \$120, saving \$80.

Pat's out-of-pocket cost:

Exam:	\$10 copay
Frames/glasses:	\$0
Contacts:	\$16 (includes 20% discount on the \$20 that is above the \$180 allowance)
Sunglasses: discount	\$80 (includes 20%)
Pat's Total Cost:	\$106



EMPLOYEE ASSISTANCE PROGRAM (EAP)

Wolfspeed proudly offers a personalized and easy to use Employee Assistance Program (EAP) brought to you by Spring Health. Personal issues can impact our lives, both at home and at work. With Spring Health you can get assistance with topics such as child and elder care, and access legal and financial resources. In addition, you can confidentially connect with a broad spectrum of mental health and wellbeing services unique to your needs and personal situation.

Services include digital on-demand exercises, coaching, work-life resources, and therapy, all available from the privacy of your Spring Health account. Additionally, you will have unlimited, one-on-one access to a Care Navigator (CN), a licensed clinician, who is there to support you through your entire wellbeing journey, from finding the right provider to check-ins on how you are doing, and more.

The program is entirely voluntary, and is offered to you and your immediate family at no cost.

The EAP can help you:

- Address marital and relationship issues
- Strengthen relationships and improve communication
- Deal with stress, anxiety and depression
- Understand grief and bereavement
- Find solutions for work-related issues
- Work towards life goals
- Find resources for your family in the community
- Address alcohol and drug misuse
- Find solutions relating to legal or financial issues
- Obtain support for child and elder care

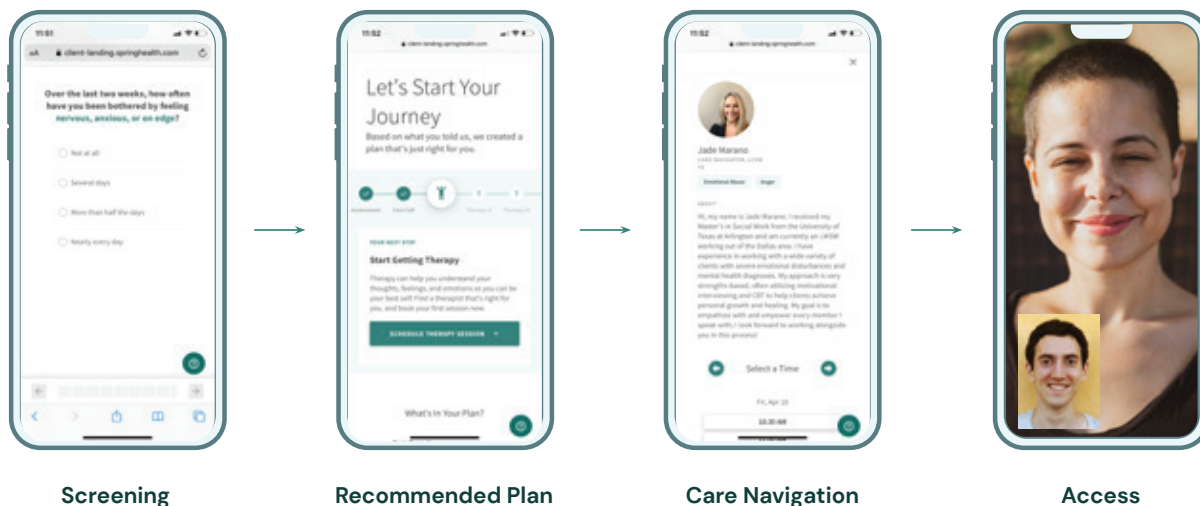
To get started, create a personalized care plan by first completing your mental and emotional wellness check-in at **wolfspeed.springhealth.com**.

LIVE WELL.

Sometimes it's difficult to admit that life can be challenging or to ask for help. Call on the EAP...that's why they're here!

Spring Health Mobile

Simplifying the member journey



For quick and easy access to Spring Health, activate your account at **wolfspeed.springhealth.com** and download the app, SpringHealth Mobile.

LIFE AND ACCIDENTAL DEATH & DISMEMBERMENT (AD&D)

Life, AD&D, and Disability benefits are offered through Lincoln Financial.

Basic Life and AD&D

Wolfspeed provides Basic Life and AD&D coverage at no cost to eligible employees. Employees will receive two times annual base salary, up to \$500,000 (minimum of \$50,000), with amounts rounded to the next highest \$1,000. In addition, Wolfspeed provides life insurance equal to \$5,000 for spouses and \$5,000 for each dependent child.

Supplemental Life and AD&D

In addition to the company-provided Basic Life and AD&D, you have the option to purchase coverage for yourself and your dependents. As a new hire, you can elect any amount up to the guaranteed issue amount without Evidence of Insurability (EOI). Any amount above the guaranteed issue amount will require EOI. If you are required to complete EOI, your enrollment will be suspended until your EOI is approved by Lincoln Financial.

For You



- Up to five times annual base salary in increments of \$10,000, not to exceed \$500,000
- Life guaranteed issue of \$300,000
- EOI is required for coverage amounts above \$300,000 and for any amount if you've previously been denied coverage

For Your Spouse



- Up to 100%* of employee amount in increments of \$5,000, not to exceed \$250,000
- Life guaranteed issue of \$25,000
- To purchase coverage for your spouse, you must purchase coverage for yourself

For Your Children



- Birth to age 26: up to 100%* of employee amount in increments of \$2,500, not to exceed \$10,000
- Life guaranteed issue of \$10,000
- To purchase coverage for your dependent child, you must purchase coverage for yourself

*100% limitation is based on total dependent coverage and total employee coverage between the supplemental policy and your employer-provided basic policy.





Supplemental Life Biweekly Rates

Rates for employee and spouse coverage are based on age.

Supplemental Term Life Premium Rates for Employee and Dependent Spouse

AGE	BIWEEKLY RATE PER \$1,000
<30	\$0.028
30-34	\$0.037
35-39	\$0.051
40-44	\$0.069
45-49	\$0.115
50-54	\$0.175
55-59	\$0.268
60-64	\$0.383
65-69	\$0.706
70-74	\$1.163
75+	\$2.562

Supplemental Term Life Premium Rates for Dependent Child(ren)

Rates for dependent child(ren) are \$0.161 per \$1,000 of coverage.

Supplemental AD&D Premium Rates

	BIWEEKLY RATE PER \$1,000
Employee	\$0.009
Spouse	\$0.005
Child	\$0.005

DISABILITY

Disability benefits, provided through Lincoln Financial, are designed to provide income protection in case you are unable to work due to a non work-related illness or injury. Wolfsped provides short-term disability and long-term disability at no cost to eligible employees.

Short-Term Disability

- Seven-day elimination period (with benefits beginning on day eight)
- Up to 180 days of coverage
- Benefit:
 - Approximately 100% of weekly earnings from day 8 to 45
 - Approximately 80% of weekly earnings from day 46 to 9
 - Approximately 60% of weekly earnings from day 91 to 180

Long-Term Disability

- 180-day elimination period
- Benefit: approximately 60% of monthly earnings, up to \$8,000 per month

PARENTAL LEAVE

As a commitment to supporting employees and their families during significant life events, Wolfsped grants all eligible employees a six (6) week paid “Parental Leave”. This leave enables employees to take time off to bond with a new child (through birth, adoption or foster care). The leave is effective on the date of the event (i.e., birth of child) or after a short-term disability claim has been exhausted, if applicable. Parental Leave is an available benefit for all eligible employees upon commencement of their employment with Wolfsped.

To file a claim for your paid parental leave, you will need to contact Lincoln Financial at **1-888-408-7300** or online at **<http://mylincolnportal.com>**. First time users will need our company code **Wolfsped** to set up access. You will need to notify Lincoln Financial of your need for leave to care for a newborn, foster, or adopted child, and Lincoln Financial will evaluate your eligibility for FMLA and/or state leave and Wolfsped’s paid parental leave.

If you need more information on Parental Leave, contact HealthAdvocate at **866-695-8622** or dial **919-407-7333** to speak with an accessHR team member.

THE DISABILITY PLAN IN ACTION – AN EXAMPLE

Sara earns \$65,000 a year (\$1,500 per week) and enrolled needs to have back surgery which will require be out of work for 63 days (9 weeks). Sara is concerned about how she will pay her rent, auto lease, and other monthly bills once her PTO runs out and her annual salary stops. Her manager encourages her to call accessHR to discuss her short-term disability benefits, which Wolfsped provides at no cost to employees. Sara is relieved to learn during the 63 days she will be out of work, she will continue to receive most of her pay through a combination of PTO and STD.

Here’s how it works:

On	Sara will receive
Day 1-7	\$1,500

Sara will need to use only 5 of her PTO days (because two days of the 7-day elimination period are on the weekend)

Day 8 - 45	\$1,500/week
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Sara will need to use only 5 of her PTO STD benefits will pay 100% of Sara’s weekly salary

Day 46 – 63	\$1,200/week
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STD benefits will pay 80% of Sara’s weekly salary

Sara also takes advantage of the Employee Assistance Program through Spring Health to help her deal with the stress of her surgery, recuperation, and transition back to work – all of which is less stressful now that Sara knows that the STD will pay most of her salary and her medical plan will pay for most of her medical expenses and rehabilitation therapy.

ADDITIONAL BENEFITS & RESOURCES

Wolfspeed offers these additional benefits and resources to support your personal well-being objectives:



Virtual Fitness

Offered through **Corporate Fitness Works (CFW)**, you have access to an on-demand and live-stream platform which bring the onsite fitness experience straight to your living room, office, or anywhere you are through your mobile device.



Adoption Assistance

This program financially reimburses you for eligible expenses related to the adoption of a child.



Childcare Assistance

Offered through **Urban Sitter**, this program offers up to \$1,000 worth of credits for at home, emergency, continuous and/or sporadic care.



Tuition Reimbursement

Get reimbursed for completing approved ongoing development and continuing education classes.



Learning and Development

Wolfspeed's virtual self-paced learning platform is available to all employees to assist with furthering your career.



Employee Resource Groups (ERGs)

As part of Wolfspeed's commitment to Diversity, Equity, and Inclusion (DEI), we invite you to participate in one or more ERG and work to establish and achieve strategic group objectives, enhance the Wolfspeed workplace, and contribute to our business success. Learn more about ERGs by searching the intranet under "Resources."

Visit **ServiceNow** or **contact the accessHR team to learn more** about these additional benefits and resources available to you.

401(K) PLAN

Who Is Eligible to Join?

All employees, including interns — except for temporary employees — are eligible to join.

How Do I Enroll?

To enroll, log on to Fidelity NetBenefits at **www.401k.com**. An enrollment kit will be mailed to your home by Fidelity. Wolfsped's plan also includes an automatic enrollment feature. As a result, after 30 days of employment, new hires are automatically enrolled at 3% unless you make an alternate election or opt out of the program. If you do not make an investment election, your contributions will be placed in the JP Morgan Lifecycle (Target Date) Fund that most closely aligns with your projected retirement date, based upon your year of birth. In addition, you will be automatically enrolled in the Annual Increase Program. This Program automatically increases your contributions by 1% each January 1. You may elect to opt out of this Program.

2023 Plan Limits

The 401(k) contribution limit for 2022 is \$20,500; however, if you will be age 50 or older by the end of the calendar year, you may make up to \$6,500 in additional contributions. **NOTE:** The 2022 401(k) contribution limits included in this guide are subject to change. The IRS had not issued 2023 contribution limits at the time this guide was printed.

Company Match

Wolfsped offers a company match that equals 100% for the first 1% of an employee's contribution and 50% for the next 5% of an employee's contribution.

Rollovers

If you have a balance in a former employer's retirement plan and/or an IRA or conduit (rollover) IRA, you may want to consider consolidating your assets in the Plan. Keeping your retirement savings in a single plan can help simplify performance tracking, provide greater convenience in making investment changes, and minimize paperwork. More information about how to initiate a rollover can be found on the Wolfsped Intranet or by contacting Fidelity.

Roth Feature

Unlike a traditional, pretax 401(k), the Roth 401(k) allows you to contribute after-tax dollars, but then withdraw qualified distributions¹ tax-free from your account when you retire if certain requirements are met.

Vesting Schedule

You are always 100% vested in your contributions; however, you are 20% vested in the employer-matching contribution after one year of employment and 100% vested after two years of employment. If you have questions about any of the funds in the 401(k) Plan's investment lineup or wish to request a prospectus on any of the funds, you may contact Fidelity at **800-835-5097**. To learn more, visit **www.401k.com**.

¹ Qualified Roth withdrawals are exempt from federal taxes. Some state taxes may apply. Generally, to qualify, the account must have been held for at least five years and you must be at least age 59½ when withdrawn.

SPEND WELL.

Save as much as you can for your future. If you save 6% or more of your pay, you'll receive the full company matching contribution.

IMPORTANT CONTACTS

Plan	Provider	Contact Info	Web Site
Benefits Navigation and Health Advocacy	HealthAdvocate SM	866-799-2731	Visit: HealthAdvocate.com/wolfsped Email: Answers@healthadvocate.com
Medical	Cigna [®]	800-347-WOLF (9653)	myCigna.com
Dental	Delta Dental [®]	800-662-8856	www.deltadentalnc.com
Vision	EyeMed [®]	866-800-5457	www.eyemed.com
Prescription Drug Plan	CVS Caremark [®]	888-296-7029	Caremark.com
Virtual Visits	MDLIVE [®]	888-726-3171	myCigna.com and click on “talk to a doctor”
Employee Assistance Plan (EAP)	Spring Health	240-558-5796	wolfsped.springhealth.com
Health Savings Account (HSA) & Flexible Spending Accounts (FSA)	Flexible Benefits Administrators (FBA)	800-437-3539	mywealthcareonline.com/FBA/
Life and AD&D	Lincoln Financial [®]	To file a claim call accessHR at 919-407-7333	
FMLA and Disability Plan	Lincoln Financial [®]	To file an STD/FMLA/LTD claim: 888-408-7300	Website to file a claim online: http://mylincolnportal.com
401(k) Plan	Fidelity Investments [®]	800-835-5097	401k.com
Wellness Program	Virgin Pulse	888-671-9395	Join.virginpulse.com/wolfspedbrightchoices

WHAT ARE MY NEXT STEPS?

After reviewing the benefits available for you and your dependents, please see **Your Enrollment Checklist** on page 4 of this guide.



REMEMBER!

If you are a new hire, you need to enroll within 30 days of starting your employment with Wolfspeed.

READY TO ENROLL IN YOUR BENEFITS?

1. Open the Workday application by clicking **here** (or go to <https://wd5.myworkday.com/cree/d/home.html>) and navigate to your inbox to complete your Open Enrollment Change task.
2. For more detailed enrollment instructions, please navigate to the accessHR portal by clicking **here** (or go to https://cree.service-now.com/accesshr?id=hr_dashboard) and search for the “Open Enrollment online instructions” knowledge article.

WHERE DO I GO FOR ADDITIONAL SUPPORT OR QUESTIONS?

Benefit questions:

HealthAdvocate (Starting 1/1/2023)

Phone: 866-799-2731

Website: www.HealthAdvocate.com/wolfspeed

Email: Answers@healthadvocate.com

Hours: Monday through Friday, 8 a.m. to 10 p.m. EST

Workday questions:

accessHR

Phone: 919-407-7333

To create a case go online:

accessHR > Create a Case

Hours: Monday through Friday, 7 a.m. to 7 p.m. EST



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Choose Well. Spend Well. Live Well.



1. Medicare Part D Creditable Coverage Notice
2. HIPAA Comprehensive Notice of Privacy Policy and Procedures
3. Notice of Special Enrollment Rights
4. General COBRA Notice
5. Women's Health and Cancer Rights Notice
6. Children's Health Insurance Program (CHIP) Notice
7. ADA Notice for Bright Choices Wellness Program
8. Your Rights and Protections Against Surprise Medical Bills

IMPORTANT NOTICE FROM WOLFSPEED, INC. ABOUT YOUR PRESCRIPTION DRUG COVERAGE AND MEDICARE

Please read this notice carefully and keep it where you can find it. This notice has information about your current prescription drug coverage with Wolfspeed, Inc. and about your options under Medicare's prescription drug coverage. This information can help you decide whether or not you want to join a Medicare drug plan. If you are considering joining, you should compare your current coverage, including which drugs are covered at what cost, with the coverage and costs of the plans offering Medicare prescription drug coverage in your area. Information about where you can get help to make decisions about your prescription drug coverage is at the end of this notice.

There are two important things you need to know about your current coverage and Medicare's prescription drug coverage:

1. Medicare prescription drug coverage became available in 2006 to everyone with Medicare. You can get this coverage if you join a Medicare Prescription Drug Plan or join a Medicare Advantage Plan (like an HMO or PPO) that offers prescription drug coverage. All Medicare drug plans provide at least a standard level of coverage set by Medicare. Some plans may also offer more coverage for a higher monthly premium.
2. Wolfspeed, Inc. has determined that the prescription drug coverage offered by the Wolfspeed, Inc. Health and Welfare Benefits Plan ("Plan") is, on average for all plan participants, expected to pay out as much as standard Medicare prescription drug coverage pays and is therefore considered Creditable Coverage. Because your existing coverage is Creditable Coverage, you can keep this coverage and not pay a higher premium (a penalty) if you later decide to join a Medicare drug plan.

When Can You Join A Medicare Drug Plan?

You can join a Medicare drug plan when you first become eligible for Medicare and each year from October 15th to December 7th. However, if you lose your current creditable prescription drug coverage, through no fault of your own, you will also be eligible for a two (2) month Special Enrollment Period (SEP) to join a Medicare drug plan.

What Happens To Your Current Coverage If You Decide to Join A Medicare Drug Plan?

If you decide to join a Medicare drug plan, your current Wolfspeed, Inc. coverage will not be affected.

If you do decide to join a Medicare drug plan and drop your current Wolfspeed, Inc. coverage, be aware that you and your dependents will not be able to get this coverage back.

When Will You Pay A Higher Premium (Penalty) To Join A Medicare Drug Plan?

You should also know that if you drop or lose your current coverage with Wolfspeed, Inc. and don't join a Medicare drug plan within 63 continuous days after your current coverage ends, you may pay a higher premium (a penalty) to join a Medicare drug plan later.

If you go 63 continuous days or longer without creditable prescription drug coverage, your monthly premium may go up by at least 1% of the Medicare base beneficiary premium per month for every month that you did not have that coverage. For example, if you go nineteen months without creditable coverage, your premium may consistently be at least 19% higher than the Medicare base beneficiary premium. You may have to pay this higher premium (a penalty) as long as you have Medicare prescription drug coverage. In addition, you may have to wait until the following October to join.

For More Information About This Notice Or Your Current Prescription Drug Coverage

Contact accessHR listed below for further information at 919-407-7333. NOTE: You'll get this notice each year. You will also get it before the next period you can join a Medicare drug plan, and if this coverage through Wolfsped, Inc. changes. You also may request a copy of this notice at any time.

For More Information About Your Options Under Medicare Prescription Drug Coverage

More detailed information about Medicare plans that offer prescription drug coverage is in the "Medicare & You" handbook. You'll get a copy of the handbook in the mail every year from Medicare. You may also be contacted directly by Medicare drug plans.

For more information about Medicare prescription drug coverage:

- Visit www.medicare.gov
- Call your State Health Insurance Assistance Program (see the inside back cover of your copy of the "Medicare & You" handbook for their telephone number) for personalized help
- Call 800-MEDICARE (800-633-4227). TTY users call 877-486-2048

If you have limited income and resources, extra help paying for Medicare prescription drug coverage is available. For information about this extra help, visit Social Security on the web at www.socialsecurity.gov, or call them at 800-772-1213 (TTY 800-325-0778).

Remember: Keep this Creditable Coverage notice. If you decide to join one of the Medicare drug plans, you may be required to provide a copy of this notice when you join to show whether or not you have maintained creditable coverage and, therefore, whether or not you are required to pay a higher premium (a penalty).

Date:	October 1, 2022
Name of Entity/Sender:	Wolfsped, Inc.
Contact-Position/Office:	accessHR
Address:	4600 Silicon Drive, Durham, NC 27703
Phone Number:	919-407-7333

**NOTICE OF PRIVACY PRACTICES
NOTICE OF WOLFSPED, INC. HEALTH AND WELFARE
BENEFIT PLAN HEALTH INFORMATION PRIVACY
PRACTICES**

THIS NOTICE DESCRIBES HOW MEDICAL INFORMATION ABOUT YOU MAY BE USED AND DISCLOSED AND HOW YOU CAN GET ACCESS TO THIS INFORMATION. PLEASE REVIEW IT CAREFULLY.

The effective date of this Notice of Wolfsped, Inc. Health and Welfare Benefit Plan Health Information Privacy Practices (the "Notice") is January 1, 2023, revised as of June, 2021. Wolfsped, Inc. Health and Welfare Benefit Plan (the "Plan") provides health benefits to eligible employees of Wolfsped, Inc. (the "Company") and their eligible dependents as described in the summary plan description(s) for the Plan. The Plan creates, receives, uses, maintains and discloses health information about participating employees and dependents in the course of providing these health benefits.

For ease of reference, in the remainder of this Notice, the words "you," "your," and "yours" refers to any individual with respect to whom the Plan receives, creates or maintains Protected Health Information, including employees, and COBRA qualified beneficiaries, if any, and their respective dependents.

The Plan is required by law to take reasonable steps to protect your Protected Health Information from inappropriate use or disclosure.

Your "Protected Health Information" (PHI) is information about your past, present, or future physical or mental health

condition, the provision of health care to you, or the past, present, or future payment for health care provided to you, but only if the information identifies you or there is a reasonable basis to believe that the information could be used to identify you. Protected health information includes information of a person living or deceased (for a period of fifty years after the death.)

The Plan is required by law to provide notice to you of the Plan's duties and privacy practices with respect to your PHI, and is doing so through this Notice. This Notice describes the different ways in which the Plan uses and discloses PHI. It is not feasible in this Notice to describe in detail all of the specific uses and disclosures the Plan may make of PHI, so this Notice describes all of the categories of uses and disclosures of PHI that the Plan may make and, for most of those categories, gives examples of those uses and disclosures.

The Plan is required to abide by the terms of this Notice until it is replaced. The Plan may change its privacy practices at any time and, if any such change requires a change to the terms of this Notice, the Plan will revise and re-distribute this Notice according to the Plan's distribution process. Accordingly, the Plan can change the terms of this Notice at any time. The Plan has the right to make any such change effective for all of your PHI that the Plan creates, receives or maintains, even if the Plan received or created that PHI before the effective date of the change.

The Plan is distributing this Notice, and will distribute any revisions, only to participating employees, and COBRA qualified beneficiaries, if any. If you have coverage under the Plan as a dependent of an employee, or COBRA qualified beneficiary, you can get a copy of the Notice by requesting it from the contact named at the end of this Notice.

Please note that this Notice applies only to your PHI that the Plan maintains. It does not affect your doctor's or other health care provider's privacy practices with respect to your PHI that they maintain.

RECEIPT OF YOUR PHI BY THE COMPANY AND BUSINESS ASSOCIATES

The Plan may disclose your PHI to, and allow use and disclosure of your PHI by, the Company and Business Associates without obtaining your authorization.

Plan Sponsor: The Company is the Plan Sponsor and Plan Administrator. The Plan may disclose to the Company, in summary form, claims history and other information so that the Company may solicit premium bids for health benefits, or to modify, amend or terminate the Plan. This summary information omits your name and Social Security Number and certain other identifying information. The Plan may also disclose information about your participation and enrollment status in the Plan to the Company and receive similar information from the Company. If the Company agrees in writing that it will protect the information against inappropriate use or disclosure, the Plan also may disclose to the Company a limited data set that includes your PHI, but omits certain direct identifiers, as described later in this Notice. The Plan may disclose your PHI to the Company for plan administration functions performed by the Company on behalf of the Plan, if the Company certifies to the Plan that it will protect your PHI against inappropriate use and disclosure.

Example: The Company reviews and decides appeals of claim denials under the Plan. The Claims Administrator provides PHI regarding an appealed claim to the Company for that review, and the Company uses PHI to make the decision on appeal.

Business Associates: The Plan and the Company hire third parties, such as a third-party administrator (the "Claims Administrator"), to help the Plan provide health benefits. These third parties are known as the Plan's "Business Associates." The Plan may disclose your PHI to Business Associates, like the Claims Administrator, who are hired by the Plan or the Company to assist or carry out the terms of the Plan. In addition, these Business Associates may receive PHI from third parties or create PHI about you in the course of carrying out the terms of the Plan. The Plan and the Company must require all Business Associates to agree in writing that they will protect your PHI against inappropriate use or disclosure, and will require their subcontractors and agents to do so, too.

For purposes of this Notice, all actions of the Company and the Business Associates that are taken on behalf of the Plan are considered actions of the Plan. For example, health information maintained in the files of the Claims Administrator is considered maintained by the Plan. So, when this Notice refers to the Plan taking various actions with respect to health information, those actions may be taken by the Company or a Business Associate on behalf of the Plan.

HOW THE PLAN MAY USE OR DISCLOSE YOUR PHI

The Plan may use and disclose your PHI for the following purposes without obtaining your authorization. And, with only limited exceptions, we will send all mail to you, the employee. This includes mail relating to your spouse and other family members who are covered under the Plan. If a person covered under the Plan has requested Restrictions or Confidential Communications, and if the Plan has agreed to the request, the Plan will send mail as provided by the request for Restrictions or Confidential Communications.

Your Health Care Treatment: The Plan may disclose your PHI for treatment (as defined in applicable federal rules) activities of a health care provider.

Example: If your doctor requested information from the Plan about previous claims under the Plan to assist in treating you, the Plan could disclose your PHI for that purpose.

Example: The Plan might disclose information about your prior prescriptions to a pharmacist for the pharmacist's reference in determining whether a new prescription may be harmful to you.

Making or Obtaining Payment for Health Care or Coverage: The Plan may use or disclose your PHI for payment (as defined in applicable federal rules) activities, including making payment to or collecting payment from third parties, such as health care providers and other health plans.

Example: The Plan will receive bills from physicians for medical care provided to you that will contain your PHI. The Plan will use this PHI, and create PHI about you, in the course of determining whether to pay, and paying, benefits with respect to such a bill.

Example: The Plan may consider and discuss your medical history with a health care provider to determine whether a particular treatment for which Plan benefits are or will be claimed is medically necessary as defined in the Plan.

The Plan's use or disclosure of your PHI for payment purposes may include uses and disclosures for the following purposes, among others.

- Obtaining payments required for coverage under the Plan
- Determining or fulfilling its responsibility to provide coverage and/or benefits under the Plan, including eligibility determinations and claims adjudication
- Obtaining or providing reimbursement for the provision of health care (including coordination of benefits, subrogation, and determination of cost sharing amounts)
- Claims management, collection activities, obtaining payment under a stop-loss insurance policy, and related health care data processing
- Reviewing health care services to determine medical necessity, coverage under the Plan, appropriateness of care, or justification of charges
- Utilization review activities, including precertification and preauthorization of services, concurrent and retrospective review of services

The Plan also may disclose your PHI for purposes of assisting other health plans (including other health plans sponsored by the Company), health care providers, and health care clearinghouses with their payment activities, including activities like those listed above with respect to the Plan.

Health Care Operations: The Plan may use and disclose your PHI for health care operations (as defined in applicable federal rules) which includes a variety of facilitating activities.

Example: If claims you submit to the Plan indicate that you have diabetes or another chronic condition, the Plan may use and disclose your PHI to refer you to a disease management program.

Example: If claims you submit to the Plan indicate that the stop-loss coverage that the Company has purchased in connection with the Plan may be triggered, the Plan may use or disclose your PHI to inform the stop-loss carrier of the potential claim and to make any claim that ultimately applies.

The Plan's use and disclosure of your PHI for health care operations purposes may include uses and disclosures for the following purposes.

- Quality assessment and improvement activities
- Disease management, case management and care coordination
- Activities designed to improve health or reduce health care costs
- Contacting health care providers and patients with information about treatment alternatives
- Accreditation, certification, licensing or credentialing activities
- Fraud and abuse detection and compliance programs

The Plan also may use or disclose your PHI for purposes of assisting other health plans (including other plans sponsored by the Company), health care providers and health care clearinghouses with their health care operations activities that are like those listed above, but only to the extent that both the Plan and the recipient of the disclosed information have a relationship with you and the PHI pertains to that relationship.

- The Plan's use and disclosure of your PHI for health care operations purposes may include uses and disclosures for the following additional purposes, among others.
- Underwriting (with the exception of PHI that is genetic information) premium rating and performing related functions to create, renew or replace insurance related to the Plan
- Planning and development, such as cost-management analyses
- Conducting or arranging for medical review, legal services, and auditing functions
- Business management and general administrative activities, including implementation of, and compliance with, applicable laws, and creating de-identified health information or a limited data set

The Plan also may use or disclose your PHI for purposes of assisting other health plans for which the Company is the plan sponsor, and any insurers and/or HMOs with respect to those plans, with their health care operations activities similar to both categories listed above.

Limited Data Set: The Plan may disclose a limited data set to a recipient who agrees in writing that the recipient will protect the limited data set against inappropriate use or disclosure. A limited data set is health information about you and/or others that omits your name and Social Security Number and certain other identifying information.

Legally Required: The Plan will use or disclose your PHI to the extent required to do so by applicable law. This may include disclosing your PHI in compliance with a court order, or a subpoena or summons. In addition, the Plan must allow the U.S. Department of Health and Human Services to audit Plan records.

Health or Safety: When consistent with applicable law and standards of ethical conduct, the Plan may disclose your PHI if the Plan, in good faith, believes that such disclosure is necessary to prevent or lessen a serious and imminent threat to your health or the health and safety of others. The Plan can share health information about you for certain situations such as:

- Preventing disease
- Helping with product recalls
- Reporting adverse reactions to medications
- Reporting suspected abuse, neglect, or domestic violence

Law Enforcement: The Plan may disclose your PHI to a law enforcement official if the Plan believes in good faith that your PHI constitutes evidence of criminal conduct that occurred on the premises of the Plan. The Plan also may disclose your PHI for limited law enforcement purposes.

Lawsuits and Disputes: In addition to disclosures required by law in response to court orders, the Plan may disclose your PHI in response to a subpoena, discovery request or other lawful process, but only if certain efforts have been made to notify you of the subpoena, discovery request or other lawful process or to obtain an order protecting the information to be disclosed.

Workers' Compensation: The Plan may use and disclose your PHI when authorized by and to the extent necessary to comply with laws related to workers' compensation or other similar programs.

Emergency Situation: The Plan may disclose your PHI to a family member, friend, or other person, for the purpose of helping you with your health care or payment for your health care, if you are in an emergency medical situation and you cannot give your agreement to the Plan to do this.

Personal Representatives: The Plan will disclose your PHI to your personal representatives appointed by you or designated by applicable law (a parent acting for a minor child, or a guardian appointed for an incapacitated adult, for example) to the same extent that the Plan would disclose that information to you. The Plan may choose not to disclose information to a personal representative if it has reasonable belief that: 1) you have been or may be a victim of domestic abuse by your personal representative; or 2) recognizing such person as your personal representative may result in harm to you; or 3) it is not in your best interest to treat such person as your personal representative.

Public Health: To the extent that other applicable law does not prohibit such disclosures, the Plan may disclose your PHI for purposes of certain public health activities, including, for example, reporting information related to an FDA-regulated product's quality, safety or effectiveness to a person subject to FDA jurisdiction.

Health Oversight Activities: The Plan may disclose your PHI to a public health oversight agency for authorized activities, including audits, civil, administrative or criminal investigations; inspections; licensure or disciplinary actions.

Coroner, Medical Examiner, or Funeral Director: The Plan may disclose your PHI to a coroner or medical examiner for the purposes of identifying a deceased person, determining a cause of death or other duties as authorized by law. Also, the Plan may disclose your PHI to a funeral director, consistent with applicable law, as necessary to carry out the funeral director's duties.

Organ Donation: The Plan may use or disclose your PHI to assist entities engaged in the procurement, banking, or transplantation of cadaver organs, eyes, or tissue.

Specified Government Functions: In specified circumstances, federal regulations may require the Plan to use or disclose your PHI to facilitate specified government functions related to the military and veterans, national security and intelligence activities, protective services for the president and others, and correctional institutions and inmates.

Research: The Plan may disclose your PHI to researchers when your individual identifiers have been removed or when an institutional review board or privacy board has reviewed the research proposal and established a process to ensure the privacy of the requested information and approves the research.

Disclosures to You: When you make a request for your PHI, the Plan is required to disclose to you your medical records, billing records, and any other records used to make decisions regarding your health care benefits. The Plan must also, when requested by you, provide you with an accounting of disclosures of your PHI if such disclosures were for any reason other than Treatment, Payment, or Health Care Operations (and if you did not authorize the disclosure).

AUTHORIZATION TO USE OR DISCLOSE YOUR PHI

Except as stated above, the Plan will not use or disclose your PHI unless it first receives written authorization from you. If you authorize the Plan to use or disclose your PHI, you may revoke that authorization in writing at any time, by sending notice of your revocation to the contact person named at the end of this Notice. To the extent that the Plan has taken action in reliance on your authorization (entered into an agreement to provide your PHI to a third party, for example) you cannot revoke your authorization.

Furthermore, we will not: (1) supply confidential information to another company for its marketing purposes (unless it is for certain limited Health Care Operations); (2) sell your confidential information (unless under strict legal restrictions) (to sell means to receive direct or indirect remuneration); (3) provide your confidential information to a potential employer with whom you are seeking employment without your signed authorization; or (4) use or disclose psychotherapy notes unless required by law.

Additionally, if a state or other law requires disclosure of immunization records to a school, written authorization is no longer required. However, a covered entity still must obtain and document an agreement which may be oral and over the phone.

THE PLAN MAY CONTACT YOU

The Plan may contact you for various reasons, usually in connection with claims and payments and usually by mail.

You should note that the Plan may contact you about treatment alternatives or other health-related benefits and services that may be of interest to you.

YOUR RIGHTS WITH RESPECT TO YOUR PHI

Confidential Communication by Alternative Means: If you feel that disclosure of your PHI could endanger you, the Plan will accommodate a reasonable request to communicate with you by alternative means or at alternative locations. For example, you might request the Plan to communicate with you only at a particular address. If you wish to request confidential communications, you must make your request in writing to the contact person named at the end of this Notice. You do not need to state the specific reason that you feel disclosure of your PHI might endanger you in making the request, but you do need to state whether that is the case. Your request also must specify how or where you wish to be contacted. The Plan will notify you if it agrees to your request for confidential communication. You should not assume that the Plan has accepted your request until the Plan confirms its agreement to that request in writing.

Request Restriction on Certain Uses and Disclosures: You may request the Plan to restrict the uses and disclosures it makes of your PHI. This request will restrict or limit the PHI that is disclosed for Treatment, Payment, or Health Care Operations, and this restriction may limit the information that the Plan discloses to someone who is involved in your care or the payment for your care. The Plan is not required to agree to a requested restriction, but if it does agree to your requested restriction, the Plan is bound by that agreement, unless the information is needed in an emergency situation. There are some restrictions, however, that are not permitted even with the Plan's agreement. To request a restriction, please submit your written request to the contact person identified at the end of this Notice. In the request please specify: (1) what information you want to restrict; (2) whether you want to limit the Plan's use of that information, its disclosure of that information, or both; and (3) to whom you want the limits to apply (a particular physician, for example). The Plan will notify you if it agrees to a requested restriction on how your PHI is used or disclosed. You should not assume that the Plan has accepted a requested restriction until the Plan confirms its agreement to that restriction in writing. You may request restrictions on our use and disclosure of your confidential information for the treatment, payment and health care operations purposes explained in this Notice. Notwithstanding this policy, the plan will comply with any restriction request if (1) except as otherwise required by law, the disclosure is to the health plan for purposes of carrying out payment or health care operations (and it is not for purposes of carrying out treatment); and (2) the PHI pertains solely to a health care item or service for which the health care provider has been paid out-of-pocket in full.

Right to Be Notified of a Breach: You have the right to be notified in the event that the plan (or a Business Associate) discovers a breach of unsecured protected health information.

Electronic Health Records: You may also request and receive an accounting of disclosures of electronic health records made for treatment, payment, or health care operations during the prior three years for disclosures made on or after (1) January 1, 2014 or electronic health records acquired before January 1, 2009; or (2) January 1, 2011 for electronic health records acquired on or after January 1, 2009. The first list you request within a 12-month period will be free. You may be charged for providing any additional lists within a 12-month period.

Paper Copy of This Notice: You have a right to request and receive a paper copy of this Notice at any time, even if you received this Notice previously, or have agreed to receive this Notice electronically. To obtain a paper copy please call or write the contact person named at the end of this Notice.

Right to Access Your PHI: You have a right to access your PHI in the Plan's enrollment, payment, claims adjudication and case management records, or in other records used by the Plan to make decisions about you, in order to inspect it and obtain a copy of it. Your request for access to this PHI should be made in writing to the contact person named at the end of this Notice. The Plan may deny your request for access, for example, if you request information compiled in anticipation of a legal proceeding. If access is denied, you will be provided with a written notice of the denial, a description of how you may exercise any review rights you might have, and a description of how you may complain to Plan or the Secretary of Health and Human Services. If you request a copy of your PHI, the Plan may charge a reasonable fee for copying and, if applicable, postage associated with your request.

Right to Amend: You have the right to request amendments to your PHI in the Plan's records if you believe that it is incomplete or inaccurate. A request for amendment of PHI in the Plan's records should be made in writing to the contact person named at the end of this Notice. The Plan may deny the request if it does not include a reason to support the amendment. The request also may be denied if, for example, your PHI in the Plan's records was not created by the Plan, if the PHI you are requesting to amend is not part of the Plan's records, or if the Plan determines the records containing your health information are accurate and complete. If the Plan denies your request for an amendment to your PHI, it will notify you of its decision in writing, providing the basis for the denial, information about how you can include information on your requested amendment in the Plan's records, and a description of how you may complain to Plan or the Secretary of Health and Human Services.

Accounting: You have the right to receive an accounting of certain disclosures made of your health information. Most of the disclosures that the Plan makes of your PHI are not subject to this accounting requirement because routine disclosures (those related to payment of your claims, for example) generally are excluded from this requirement. Also, disclosures that you authorize, or that occurred more than six years before the date of your request, are not subject to this requirement. To request an accounting of disclosures of your PHI, you must submit your request in writing to the contact person named at the end of this Notice. Your request must state a time period which may not include dates more than six years before the date of your request. Your request should indicate in what form you want the accounting to be provided (for example on paper or electronically). The first list you request within a 12-month period will be free. If you request more than one accounting within a 12-month period, the Plan will charge a reasonable, cost-based fee for each subsequent accounting.

Personal Representatives: You may exercise your rights through a personal representative. Your personal representative will be required to produce evidence of his/her authority to act on your behalf before that person will be given access to your PHI or allowed to take any action for you. The Plan retains discretion to deny a personal representative access to your PHI to the extent permissible under applicable law.

COMPLAINTS

If you believe that your privacy rights have been violated, you have the right to express complaints to the Plan and to the Secretary of the Department of Health and Human Services. Any complaints to the Plan should be made in writing to the contact person named at the end of this Notice. The Plan encourages you to express any concerns you may have regarding the privacy of your information. You will not be retaliated against in any way for filing a complaint.

CONTACT INFORMATION

The Plan has designated Markee McCallum, Benefits Analyst as its contact person for all issues regarding the Plan's privacy practices and your privacy rights. You can reach this contact person at: 4600 Silicon Drive Durham, NC 27703 or by phone at 919-407-7333.

NOTICE OF SPECIAL ENROLLMENT RIGHTS

If you are declining enrollment for yourself or your dependents (including your spouse) because of other health insurance or group health plan coverage, you may be able to enroll yourself or your dependents in this plan if you or your dependents lose eligibility for that other coverage (or if the employer stops contributing towards your or your dependents' other coverage). However, you must request enrollment within 30 days after your or your dependents' other coverage ends (or after the employer stops contributing toward the other coverage).

In addition, if you have a new dependent as result of marriage, birth, adoption, or placement for adoption, you may be able to enroll yourself and your dependents. However, you must request enrollment within 30 days after the marriage, birth, adoption, or placement for adoption.

Special enrollment rights also may exist in the following circumstances:

- If you or your dependents experience a loss of eligibility for Medicaid or a state Children's Health Insurance Program (CHIP) coverage and you request enrollment within 60 days after that coverage ends; or
- If you or your dependents become eligible for a state premium assistance subsidy through Medicaid or a state CHIP with respect to coverage under this plan and you request enrollment within 60 days or after the determination of eligibility for such assistance.

Note: The 60-day period for requesting enrollment applies only in these last two listed circumstances relating to Medicaid and state CHIP. As described above, a 30-day period applies to most special enrollments.

REMEMBER: If your covered dependent becomes ineligible to participate in the Wolfspeed, Inc. Health and Welfare Benefits Plan (the "Plan") during the year, you must notify us within 30 days of the date he or she becomes ineligible in order to change your pre-tax elections on account of your dependent's loss of coverage. If you fail to notify us, your dependent's coverage will terminate on the date he or she became ineligible to participate in the Plan, but you will not be allowed to change your pre-tax elections until the first day of the following plan year (unless you experience another event which would allow you to change your pre-tax elections during the middle of the year). This means that you will be required to continue to pay the premium for your dependent's coverage even though he or she is no longer participating in the Plan.

To request special enrollment or obtain more information, contact
accessHR
919-407-7333

Note: Additional information may be required if the plan requires that persons declining coverage under the plan state, in writing, the reason(s) for declining coverage.

GENERAL NOTICE OF COBRA CONTINUATION COVERAGE RIGHTS

January 1, 2023

Re: Continuation Coverage Rights Under COBRA

INTRODUCTION

You're getting this notice because you recently gained coverage under a group health plan (the Plan). This notice has important information about your right to COBRA continuation coverage, which is a temporary extension of coverage under the Plan. This notice explains COBRA continuation coverage, when it may become available to you and your family, and what you need to do to protect your right to get it. When you become eligible for COBRA, you may also become eligible for other coverage options that may cost less than COBRA continuation coverage.

The right to COBRA continuation coverage was created by a federal law, the Consolidated Omnibus Budget Reconciliation Act of 1985 (COBRA). COBRA continuation coverage can become available to you and other members of your family when group health coverage would otherwise end. For more information about your rights and obligations under the Plan and under federal law, you should review the Plan's Summary Plan Description or contact the Plan Administrator.

You may have other options available to you when you lose group health coverage. For example, you may be eligible to buy an individual plan through the Health Insurance Marketplace. By enrolling in coverage through the Marketplace, you may qualify for lower costs on your monthly premiums and lower out-of-pocket costs. Additionally, you may qualify for a 30-day special enrollment period for another group health plan for which you are eligible (such as a spouse's plan), even if that plan generally doesn't accept late enrollees.

WHAT IS COBRA CONTINUATION COVERAGE?

COBRA continuation coverage is a continuation of Plan coverage when it would otherwise end because of a life event. This is also called a "qualifying event." Specific qualifying events are listed later in this notice. After a qualifying event, COBRA continuation coverage must be offered to each person who is a "qualified beneficiary." You, your spouse, and your dependent children could become qualified beneficiaries if coverage under the Plan is lost because of the qualifying event. Under the Plan, qualified beneficiaries who elect COBRA continuation coverage must pay for COBRA continuation coverage.

If you're an employee, you'll become a qualified beneficiary if you lose your coverage under the Plan because of the following qualifying events

- Your hours of employment are reduced, or
- Your employment ends for any reason other than your gross misconduct.

If you're the spouse of an employee, you'll become a qualified beneficiary if you lose your coverage under the Plan because of the following qualifying events:

- Your spouse dies;

- Your spouse's hours of employment are reduced;
- Your spouse's employment ends for any reason other than his or her gross misconduct;
- Your spouse becomes entitled to Medicare benefits (under Part A, Part B, or both); or
- You become divorced or legally separated from your spouse.

Your dependent children will become qualified beneficiaries if they lose coverage under the Plan because of the following qualifying events:

- The parent-employee dies;
- The parent-employee's hours of employment are reduced;
- The parent-employee's employment ends for any reason other than his or her gross misconduct;
- The parent-employee becomes entitled to Medicare benefits (Part A, Part B, or both);
- The parents become divorced or legally separated; or
- The child stops being eligible for coverage under the Plan as a "dependent child."

WHEN IS COBRA CONTINUATION COVERAGE AVAILABLE?

The Plan will offer COBRA continuation coverage to qualified beneficiaries only after the Plan Administrator has been notified that a qualifying event has occurred. The employer must notify the Plan Administrator of the following qualifying events:

- The end of employment or reduction of hours of employment;
- Death of the employee; or
- The employee's becoming entitled to Medicare benefits (under Part A, Part B, or both).

For the other qualifying events (divorce or legal separation of the employee and spouse or an eligible child's losing eligibility for coverage as an eligible child), you or someone on your behalf must notify the Plan Administrator or its designee in writing within 60 days after the qualifying event occurs, using the procedures specified below. If these procedures are not followed or if the notice is not provided in writing to the Plan Administrator or its designee during the 60-day notice period, any spouse or eligible child who loses coverage will not be offered the option to elect continuation coverage.

HOW IS COBRA CONTINUATION COVERAGE PROVIDED?

Once the Plan Administrator receives notice that a qualifying event has occurred, COBRA continuation coverage will be offered to each of the qualified beneficiaries. Each qualified beneficiary will have an independent right to elect COBRA continuation coverage. Covered employees may elect COBRA continuation coverage on behalf of their spouses, and parents may elect COBRA continuation coverage on behalf of their children.

COBRA continuation coverage is a temporary continuation of coverage that generally lasts for 18 months due to employment termination or reduction of hours of work. Certain qualifying events, or a second qualifying event during the initial period of coverage, may permit a beneficiary to receive a maximum of 36 months of coverage.

There are also ways in which this 18-month period of COBRA continuation coverage can be extended:

Disability extension of 18-month period of COBRA continuation coverage

If you or anyone in your family covered under the Plan is determined by Social Security to be disabled and you notify the Plan Administrator in a timely fashion, you and your entire family may be entitled to get up to an additional 11 months of COBRA continuation coverage, for a maximum of 29 months. The disability would have to have started at some time before the 60th day of COBRA continuation coverage and must last at least until the end of the 18-month period of COBRA continuation coverage.

You must make sure that the Plan Administrator or its designee is notified in writing of the Social Security Administration's determination within 60 days after (i) of the date of the determination or (ii) the date of the qualifying event or (iii) the date coverage is lost due to the qualifying event, whichever occurs last. But in any event the notice must be provided before the end of the 18-month period of COBRA continuation coverage. The plan requires you to follow the procedures specified in the box above, under the heading entitled "Notice Procedures." In addition, your notice must include

- the name of the disabled qualified beneficiary,
- the date that the qualified beneficiary became disabled, and
- the date that the Social Security Administration made its determination.

Your notice must also include a copy of the Social Security Administration's determination. If these procedures are not followed or if the notice is not provided in writing to the Plan Administrator or its designee within the required period, then there will be no disability extension of COBRA continuation.

Second qualifying event extension of 18-month period of continuation coverage

If your family experiences another qualifying event during the 18 months of COBRA continuation coverage, the spouse and dependent children in your family can get up to 18 additional months of COBRA continuation coverage, for a maximum of 36 months, if the Plan is properly notified about the second qualifying event. This extension may be available to the spouse and any dependent children getting COBRA continuation coverage if the employee or former employee dies; becomes entitled to Medicare benefits (under Part A, Part B, or both); gets divorced or legally separated; or if the dependent child stops being eligible under the Plan as a dependent child. This extension is only available if the second qualifying event would have caused the spouse or dependent child to lose coverage under the Plan had the first qualifying event not occurred.

ARE THERE OTHER COVERAGE OPTIONS BESIDES COBRA CONTINUATION COVERAGE?

Yes. Instead of enrolling in COBRA continuation coverage, there may be other coverage options for you and your family through the Health Insurance Marketplace, Medicare, Medicaid, **Children's Health Insurance Program (CHIP)**, or other group health plan coverage options (such as a spouse's plan) through what is called a "special enrollment period." Some of these options may cost less than COBRA continuation coverage. You can learn more about many of these options at www.healthcare.gov.

CAN I ENROLL IN MEDICARE INSTEAD OF COBRA CONTINUATION COVERAGE AFTER MY GROUP HEALTH PLAN COVERAGE ENDS?

In general, if you don't enroll in Medicare Part A or B when you are first eligible because you are still employed, after the Medicare initial enrollment period, you have an 8-month special enrollment period¹ to sign up for Medicare Part A or B, beginning on the earlier of

- The month after your employment ends; or
- The month after group health plan coverage based on current employment ends.

If you don't enroll in Medicare and elect COBRA continuation coverage instead, you may have to pay a Part B late enrollment penalty and you may have a gap in coverage if you decide you want Part B later. If you elect COBRA continuation coverage and later enroll in Medicare Part A or B before the COBRA continuation coverage ends, the Plan may terminate your continuation coverage. However, if Medicare Part A or B is effective on or before the date of the COBRA election, COBRA coverage may not be discontinued on account of Medicare entitlement, even if you enroll in the other part of Medicare after the date of the election of COBRA coverage.

If you are enrolled in both COBRA continuation coverage and Medicare, Medicare will generally pay first (primary payer) and COBRA continuation coverage will pay second. Certain plans may pay as if secondary to Medicare, even if you are not enrolled in Medicare. For more information visit www.medicare.gov/medicare-and-you.

IF YOU HAVE QUESTIONS

Questions concerning your Plan or your COBRA continuation coverage rights should be addressed to the contact or contacts identified below. For more information about your rights under the Employee Retirement Income Security Act (ERISA), including COBRA, the Patient Protection and Affordable Care Act, and other laws affecting group health plans, contact the nearest Regional or District Office of the U.S. Department of Labor's Employee Benefits Security Administration (EBSA) in your area or visit www.dol.gov/ebsa. (Addresses and phone numbers of Regional and District EBSA Offices are available through EBSA's website.) For more information about the Marketplace, visit www.HealthCare.gov.

KEEP YOUR PLAN INFORMED OF ADDRESS CHANGES

To protect your family's rights, let the Plan Administrator know about any changes in the addresses of family members. You should also keep a copy, for your records, of any notices you send to the Plan Administrator.

PLAN CONTACT INFORMATION

accessHR
919-407-7333

WOMEN'S HEALTH AND CANCER RIGHTS ACT NOTICE

Wolfspeed, Inc. Employee Health Care Plan is required by law to provide you with the following notice:

If you have had or are going to have a mastectomy, you may be entitled to certain benefits under the Women's Health and Cancer Rights Act of 1998 (WHCRA). For individuals receiving mastectomy-related benefits, coverage will be provided in a manner determined in consultation with the attending physician and the patient, for:

- All stages of reconstruction of the breast on which the mastectomy was performed;
- Surgery and reconstruction of the other breast to produce a symmetrical appearance;
- Prostheses; and
- Treatment of physical complications of the mastectomy, including lymphedema.

These benefits will be provided subject to the same deductibles and coinsurance applicable to other medical and surgical benefits provided under this plan.

If you would like more information on WHCRA benefits, please refer to your Summary Plan Description or contact the accessHR at 919-407-7333.

Premium Assistance Under Medicaid and the Children's Health Insurance Program (CHIP)

If you or your children are eligible for Medicaid or CHIP and you're eligible for health coverage from your employer, your state may have a premium assistance program that can help pay for coverage, using funds from their Medicaid or CHIP programs. If you or your children aren't eligible for Medicaid or CHIP, you won't be eligible for these premium assistance programs but you may be able to buy individual insurance coverage through the Health Insurance Marketplace. For more information, visit www.healthcare.gov.

If you or your dependents are already enrolled in Medicaid or CHIP and you live in a State listed below, contact your State Medicaid or CHIP office to find out if premium assistance is available.

If you or your dependents are NOT currently enrolled in Medicaid or CHIP, and you think you or any of your dependents might be eligible for either of these programs, contact your State Medicaid or CHIP office or dial **1-877-KIDS NOW** or www.insurekidsnow.gov to find out how to apply. If you qualify, ask your state if it has a program that might help you pay the premiums for an employer-sponsored plan.

If you or your dependents are eligible for premium assistance under Medicaid or CHIP, as well as eligible under your employer plan, your employer must allow you to enroll in your employer plan if you aren't already enrolled. This is called a "special enrollment" opportunity, and **you must request coverage within 60 days of being determined eligible for premium assistance**. If you have questions about enrolling in your employer plan, contact the Department of Labor at www.askebsa.dol.gov or call **1-866-444-EBSA (3272)**.

If you live in one of the following states, you may be eligible for assistance paying your employer health plan premiums. The following list of states is current as of July 31, 2022. Contact your State for more information on eligibility –

ALABAMA - Medicaid	CALIFORNIA - Medicaid
Website: http://myalhipp.com/ Phone: 1-855-692-5447	Website: Health Insurance Premium Payment (HIPP) Program http://dhcs.ca.gov/hipp Phone: 916-445-8322 Fax: 916-440-5676 Email: hipp@dhcs.ca.gov
ALASKA - Medicaid	COLORADO Health First Colorado (Colorado's Medicaid Program) & Child Health Plan Plus (CHP+)
The AK Health Insurance Premium Payment Program Website: http://myakhipp.com/ Phone: 1-866-251-4861 Email: CustomerService@MyAKHIPP.com Medicaid Eligibility: http://dhss.alaska.gov/dpa/Pages/medicaid/default.aspx	Health First Colorado Website: https://www.healthfirstcolorado.com/ Health First Colorado Member Contact Center: 1-800-221-3943/ State Relay 711 CHP+: https://www.colorado.gov/pacific/hcpf/child-health-plan-plus CHP+ Customer Service: 1-800-359-1991/ State Relay 711 Health Insurance Buy-In Program (HIBI): https://www.colorado.gov/pacific/hcpf/health-insurance-buy-program HIBI Customer Service: 1-855-692-6442
ARKANSAS - Medicaid	FLORIDA - Medicaid
Website: http://myarhipp.com/ Phone: 1-855-MyARHIPP (855-692-7447)	Website: https://www.flmedicaidtprecovery.com/flmedicaidtprecovery.com/hipp/index.html Phone: 1-877-357-3268
GEORGIA- Medicaid	MASSACHUSETTS - Medicaid and CHIP
GA HIPP Website: https://medicaid.georgia.gov/healthinsurance-premium-payment-program-hipp Phone: 678-564-1162, Press 1 GA CHIPRA Website: https://medicaid.georgia.gov/programs/third-partyliability/childrens-health-insurance-programreauthorization-act-2009-chipra Phone: (678) 564-1162, Press 2	Website: https://www.mass.gov/masshealth/pa Phone: 1-800-862-4840 TTY: (617) 886-8102
INDIANA - Medicaid	MINNESOTA - Medicaid
Healthy Indiana Plan for low-income adults 19-64 Website: http://www.in.gov/fssa/hip/ Phone: 1-877-438-4479 All other Medicaid Website: https://www.in.gov/medicaid/ Phone 1-800-457-4584	Website: https://mn.gov/dhs/people-we-serve/children-and-families/health-care/health-care-programs/programs-and-services/other-insurance.jsp Phone: 1-800-657-3739

IOWA - Medicaid and CHIP (Hawki)	MISSOURI - Medicaid
Medicaid Website: https://dhs.iowa.gov/ime/members Medicaid Phone: 1-800-338-8366 Hawki Website: http://dhs.iowa.gov/Hawki Hawki Phone: 1-800-257-8563 HIPP Website: https://dhs.iowa.gov/ime/members/medicaid-a-to-z/hipp HIPP Phone: 1-888-346-9562	Website: http://www.dss.mo.gov/mhd/participants/pages/hipp.htm Phone: 573-751-2005
KANSAS - Medicaid	MONTANA - Medicaid
Website: https://www.kancare.ks.gov/ Phone: 1-800-792-4884	Website: http://dphhs.mt.gov/MontanaHealthcarePrograms/HIPP Phone: 1-800-694-3084 Email: HSHIPPProgram@mt.gov
KENTUCKY - Medicaid	NEBRASKA - Medicaid
Kentucky Integrated Health Insurance Premium Payment Program (KI-HIPP) Website: https://chfs.ky.gov/agencies/dms/member/Pages/kihipp.aspx Phone: 1-855-459-6328 Email: KIHIPPPROGRAM@ky.gov KCHIP Website: https://kidshealth.ky.gov/Pages/index.aspx Phone: 1-877-524-4718 Kentucky Medicaid Website: https://chfs.ky.gov	Website: http://www.ACCESSNebraska.ne.gov Phone: 1-855-632-7633 Lincoln: 402-473-7000 Omaha: 402-595-1178
LOUISIANA - Medicaid	NEVADA - Medicaid
Website: www.medicaid.la.gov or www.ldh.la.gov/lahipp Phone: 1-888-342-6207 (Medicaid hotline) or 1-855-618-5488 (LaHIPP)	Medicaid Website: http://dhcfp.nv.gov Medicaid Phone: 1-800-992-0900
MAINE - Medicaid	NEW HAMPSHIRE - Medicaid
Enrollment Website: https://www.maine.gov/dhhs/ofi/applications-forms Phone: 1-800-442-6003 TTY: Maine relay 711 Private Health Insurance Premium Webpage: https://www.maine.gov/dhhs/ofi/applications-forms Phone: -800-977-6740. TTY: Maine relay 711	Website: https://www.dhhs.nh.gov/programs-services/medicaid/health-insurance-premium-program Phone: 603-271-5218 Toll free number for the HIPP program: 1-800-852-3345, ext 5218

NEW JERSEY - Medicaid and CHIP		SOUTH DAKOTA - Medicaid	
Medicaid Website: http://www.state.nj.us/humanservices/dmahs/clients/medicaid/ Medicaid Phone: 609-631-2392 CHIP Website: http://www.njfamilycare.org/index.html CHIP Phone: 1-800-701-0710		Website: http://dss.sd.gov Phone: 1-888-828-0059	
NEW YORK - Medicaid		TEXAS - Medicaid	
Website: https://www.health.ny.gov/health_care/medicaid/ Phone: 1-800-541-2831		Website: http://gethipptexas.com/ Phone: 1-800-440-0493	
NORTH CAROLINA - Medicaid		UTAH - Medicaid and CHIP	
Website: https://medicaid.ncdhhs.gov/ Phone: 919-855-4100		Medicaid Website: https://medicaid.utah.gov/ CHIP Website: http://health.utah.gov/chip Phone: 1-877-543-7669	
NORTH DAKOTA - Medicaid		VERMONT - Medicaid	
Website: http://www.nd.gov/dhs/services/medicalserv/medicaid/ Phone: 1-844-854-4825		Website: http://www.greenmountaincare.org/ Phone: 1-800-250-8427	
OKLAHOMA - Medicaid and CHIP		VIRGINIA - Medicaid and CHIP	
Website: http://www.insureoklahoma.org Phone: 1-888-365-3742		Website: https://www.coverva.org/en/famis-select https://www.coverva.org/en/hipp Medicaid Phone: 1-800-432-5924 CHIP Phone: 1-800-432-5924	
OREGON - Medicaid		WASHINGTON - Medicaid	
Website: http://healthcare.oregon.gov/Pages/index.aspx http://www.oregonhealthcare.gov/index-es.html Phone: 1-800-699-9075		Website: https://www.hca.wa.gov/ Phone: 1-800-562-3022	
PENNSYLVANIA - Medicaid		WEST VIRGINIA - Medicaid and CHIP	
Website: https://www.dhs.pa.gov/providers/Providers/Pages/Medical/HIPP-Program.aspx Phone: 1-800-692-7462		Website: https://dhhr.wv.gov/bms/ http://mywvhpp.com/ Medicaid Phone: 304-558-1700 CHIP Toll-free phone: 1-855-MyWVHIPP (1-855-699-8447)	
RHODE ISLAND - Medicaid and CHIP		WISCONSIN - Medicaid and CHIP	
Website: http://www.eohhs.ri.gov/ Phone: 1-855-697-4347, or 401-462-0311 (Direct Rite Share Line)		Website: https://www.dhs.wisconsin.gov/badgercareplus/p-10095.htm Phone: 1-800-362-3002	
SOUTH CAROLINA - Medicaid		WYOMING - Medicaid	
Website: https://www.scdhhs.gov Phone: 1-888-549-0820		Website: https://health.wyo.gov/healthcarefin/medicaid/programs-and-eligibility/ Phone: 1-800-251-1269	

To see if any other states have added a premium assistance program since July 31, 2022 or for more information on special enrollment rights, contact either:

U.S. Department of Labor

U.S. Department of Health and Human Services

Employee Benefits Security Administration Centers for Medicare & Medicaid Services

www.dol.gov/agencies/ebsa

www.cms.hhs.gov

1-866-444-EBSA (3272)

1-877-267-2323, Menu Option 4, Ext. 61565

Paperwork Reduction Act Statement

According to the Paperwork Reduction Act of 1995 (Pub. L. 104-13) (PRA), no persons are required to respond to a collection of information unless such collection displays a valid Office of Management and Budget (OMB) control number. The Department notes that a Federal agency cannot conduct or sponsor a collection of information unless it is approved by OMB under the PRA, and displays a currently valid OMB control number, and the public is not required to respond to a collection of information unless it displays a currently valid OMB control number. See 44 U.S.C. 3507. Also, notwithstanding any other provisions of law, no person shall be subject to penalty for failing to comply with a collection of information if the collection of information does not display a currently valid OMB control number. See 44 U.S.C. 3512.

The public reporting burden for this collection of information is estimated to average approximately seven minutes per respondent. Interested parties are encouraged to send comments regarding the burden estimate or any other aspect of this collection of information, including suggestions for reducing this burden, to the U.S. Department of Labor, Employee Benefits Security Administration, Office of Policy and Research, Attention: PRA Clearance Officer, 200 Constitution Avenue, N.W., Room N-5718, Washington, DC 20210 or email ebbsa.opr@dol.gov and reference the OMB Control Number 1210-0137.

NOTICE REGARDING BRIGHT CHOICES WELLNESS PROGRAM

Wolfspeed's wellness program Bright Choices is a voluntary wellness program available to all employees. The program is administered according to federal rules permitting employer-sponsored wellness programs that seek to improve employee health or prevent disease, including the Americans with Disabilities Act of 1990, the Genetic Information Nondiscrimination Act of 2008, and the Health Insurance Portability and Accountability Act, as applicable, among others. If you choose to participate in the wellness program you will be asked to complete a voluntary member health assessment or "MHA" that asks a series of questions about your health-related activities and behaviors and whether you have or had certain medical conditions (e.g., cancer, diabetes, or heart disease). You will also be asked to complete a biometric screening, which will include a blood test for glucose and Trig/HDL Ratio. You are not required to complete the MHA or to participate in the blood test or other medical examinations.

The information from your MHA and the results from your biometric screening will be used to provide you with information to help you understand your current health and potential risks, and may also be used to offer you services through the wellness program, such as case management, disease management, health coaching and much more. You also are encouraged to share your results or concerns with your own doctor.

PROTECTIONS FROM DISCLOSURE OF MEDICAL INFORMATION

We are required by law to maintain the privacy and security of your personally identifiable health information. Although the wellness program and Wolfspeed may use aggregate information it collects to design a program based on identified health risks in the workplace, Bright Choices will never disclose any of your personal information either publicly or to the employer, except as necessary to respond to a request from you for a reasonable accommodation needed to participate in the wellness program, or as expressly permitted by law. Medical information that personally identifies you that is provided

in connection with the wellness program will not be provided to your supervisors or managers and may never be used to make decisions regarding your employment.

Your health information will not be sold, exchanged, transferred, or otherwise disclosed except to the extent permitted by law to carry out specific activities related to the wellness program, and you will not be asked or required to waive the confidentiality of your health information as a condition of participating in the wellness program. Anyone who receives your information for purposes of providing you services as part of the wellness program will abide by the same confidentiality requirements. The only individual(s) who will receive your personally identifiable health information are a registered nurse, a doctor, or a health coach in order to provide you with services under the wellness program.

In addition, all medical information obtained through the wellness program will be maintained separate from your personnel records, information stored electronically will be encrypted, and no information you provide as part of the wellness program will be used in making any employment decision. Appropriate precautions will be taken to avoid any data breach, and in the event a data breach occurs involving information you provide in connection with the wellness program, we will notify you immediately.

You may not be discriminated against in employment because of the medical information you provide as part of participating in the wellness program, nor may you be subjected to retaliation if you choose not to participate. If you have questions or concerns regarding this notice, or about protections against discrimination and retaliation, please contact the accessHR at 919-407-7333.

YOUR RIGHTS AND PROTECTIONS AGAINST SURPRISE MEDICAL BILLS

When you get emergency care or get treated by an out-of-network provider at an in-network hospital or ambulatory surgical center, you are protected from surprise billing or balance billing.

What is “balance billing” (sometimes called “surprise billing”)?

When you see a doctor or other health care provider, you may owe certain out-of-pocket costs, such as a copayment, coinsurance, and/or a deductible. You may have other costs or have to pay the entire bill if you see a provider or visit a health care facility that isn't in your health plan's network.

“Out-of-network” describes providers and facilities that haven't signed a contract with your health plan. Out-of-network providers may be permitted to bill you for the difference between what your plan agreed to pay and the full amount charged for a service. This is called “**balance billing**.” This amount is likely more than in-network costs for the same service and might not count toward your annual out-of-pocket limit.

“Surprise billing” is an unexpected balance bill. This can happen when you can't control who is involved in your care—like when you have an emergency or when you schedule a visit at an in-network facility but are unexpectedly treated by an out-of-network provider.

You are protected from balance billing for:

Emergency services

If you have an emergency medical condition and get emergency services from an out-of-network provider or facility, the most the provider or facility may bill you is your plan's in-network cost-sharing amount (such as copayments and coinsurance). You **can't** be balance billed for these emergency services. This includes services you may get after you're in stable condition, unless you give written consent and give up your protections not to be balanced billed for these post-stabilization services.

Certain services at an in-network hospital or ambulatory surgical center

When you get services from an in-network hospital or ambulatory surgical center, certain providers there may be out-of-network. In these cases, the most those providers may bill you is your plan's in-network cost-sharing amount. This applies to emergency medicine, anesthesia, pathology, radiology, laboratory, neonatology, assistant surgeon, hospitalist, or intensivist services. These

providers **can't** balance bill you and may **not** ask you to give up your protections not to be balance billed.

If you get other services at these in-network facilities, out-of-network providers **can't** balance bill you, unless you give written consent and give up your protections.

You're never required to give up your protections from balance billing. You also aren't required to get care out-of-network. You can choose a provider or facility in your plan's network.

When balance billing isn't allowed, you also have the following protections:

- You are only responsible for paying your share of the cost (like the copayments, coinsurance, and deductibles that you would pay if the provider or facility was in-network). Your health plan will pay out-of-network providers and facilities directly.
- Your health plan generally must:
 - Cover emergency services without requiring you to get approval for services in advance (prior authorization).
 - Cover emergency services by out-of-network providers.
 - Base what you owe the provider or facility (cost-sharing) on what it would pay an in-network provider or facility and show that amount in your explanation of benefits.
 - Count any amount you pay for emergency services or out-of-network services toward your deductible and out-of-pocket limit.

Individuals interested in obtaining information from the DOL concerning employment-based health coverage laws may call the Employee Benefits Security Administration (EBSA) Toll-Free Hotline at 1-866-444-EBSA (3272) or visit the DOL's website (www.dol.gov/ebsa).